

Teesside Corporation Act 1971

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ELIZABETH II



1971 CHAPTER xvii

An Act to re-enact with amendments certain local enactments in force in the county borough of Teesside relating to undertakings of the Corporation; to confer further powers upon the mayor, aldermen and burgesses of that borough; and for other purposes.

[30th March 1971]

WHEREAS—

(1) By virtue of the Teesside Order 1967 (hereinafter referred to as “the Order of 1967”), the county borough of Teesside was constituted on the 1st April, 1968, so as to consist of an area shown by a continuous red line on the boundary map referred to in article 4 of the Order of 1967 and being—

- (a) the area of the county borough of Middlesbrough;
- (b) the area of the borough of Stockton-on-Tees in the administrative county of Durham;
- (c) the greater part of the area of the urban district of Billingham and part of the area of the rural district of Stockton in the said administrative county;
- (d) the area of the borough of Thornaby-on-Tees and the greater part of the area of the borough of Redcar in the administrative county of the North Riding of York;

- (e) the parts of the area of the urban districts of Eston, Guisborough and Saltburn and Marske-by-the-Sea in the said administrative county; and
- (f) the area of the parishes of Hemlington and Marton and parts of the area of the parishes of Ormesby, Maltby, Newby, Nunthorpe and Stainton in the rural district of Stokesley in the said administrative county;

as they existed before the 1st April, 1968:

(2) Numerous local enactments were in force in parts of the said area and by article 51 of the Order of 1967 it was provided that the provisions of any such enactment should continue to apply to those parts of that area, except that certain specified enactments were extended to apply to the whole of the county borough of Teesside (hereinafter referred to as "the borough"):

(3) It was further provided by the said article that all the said local enactments should on the 31st December, 1971, cease to have effect:

(4) It is expedient that certain of the said enactments relating to various undertakings of the mayor, aldermen and burgesses of the borough (hereinafter referred to as "the Corporation") should be re-enacted with amendments and applied to the whole of the borough:

(5) By virtue of article 50 of the Order of 1967 the undertaking of the Teesside Railless Traction Board was merged with the transport undertaking of the Corporation and it was further provided by the said article that the enactments relating thereto should cease to have effect on the 31st December, 1971:

(6) It is expedient that certain of the said enactments relating to the undertaking formerly vested in the Teesside Railless Traction Board should be re-enacted with amendments:

(7) It is expedient to make further provision in regard to the undertakings of the Corporation as in this Act contained:

(8) And whereas it is expedient that the other provisions contained in this Act should be enacted:

(9) And whereas the purposes of this Act cannot be effected without the authority of Parliament:

(10) And whereas in relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act 1933 have been observed:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows, that is to say:—

PART I

PRELIMINARY

1.—(1) This Act may be cited as the Teesside Corporation Act 1971. Short and collective titles.

(2) This Act and the Teesside Corporation Act 1969 may be cited together as the Teesside Corporation Acts 1969 and 1971. 1969 c. xiv.

2. This Act is divided into Parts as follows:—

Division of Act into Parts.

Part I.—Preliminary.

Part II.—Heating undertaking.

Part III.—Markets undertaking.

Part IV.—Transport undertaking.

Part V.—Transporter bridge undertaking.

Part VI.—Ferries undertaking.

Part VII.—Tees (Newport) bridge undertaking.

Part VIII.—Victoria bridge undertaking.

Part IX.—Miscellaneous and general.

3.—(1) Save as otherwise expressly provided, the provisions of this Act shall come into force on the 1st January, 1971. Commencement of Act.

(2) As from the passing of this Act the provisions set out in Schedule 1 to this Act shall come into force.

4.—(1) In this Act the several words and expressions to which meanings are assigned by section 343 of the Public Health Act 1936 have the same respective meanings unless there be something in the subject or context repugnant to such construction. Interpretation. 1936 c. 49.

(2) In this Act unless otherwise expressly enacted or unless the subject or context otherwise requires the following expressions have the meanings hereby respectively assigned to them:—

“ the Act of 1960 ” means the Road Traffic Act 1960; 1960 c. 16.

“ apparatus ” includes any structure constructed for the lodging therein of apparatus;

PART I
—cont.

- “ the borough ” means the county borough of Teesside;
- “ the Corporation ” means the mayor, aldermen and burgesses of the borough acting by the council;
- “ the council ” means the council of the borough;
- “ the electricity board ” means the North Eastern Electricity Board;
- “ enactment ” includes an enactment in this Act or in any general or local Act and any order, byelaw or regulation for the time being in force within the borough;
- “ existing enactments ” means the local enactments which are repealed by section 131 (Repeal) of this Act;
- “ the ferries undertaking ” means the ferries undertaking of the Corporation and includes the vessels, ferry landing places, wharfs, staiths, sheds, lands, properties, buildings, apparatus, rights, powers and privileges for the time being belonging to or held, used or enjoyed by the Corporation for or in relation to or in connection with the ferries of the Corporation;
- “ the ferry landing places ” means the landing place adjacent to the transporter bridge on the south side of the river and the Port Clarence landing place on the north side of the river or such other landing places as the Corporation may from time to time decide;
- “ the gas board ” means the Northern Gas Board;
- “ the generating board ” means the Central Electricity Generating Board;
- “ the heating undertaking ” means the undertaking of the Corporation authorised by Part II (Heating undertaking) of this Act and includes all lands, stations, boiler-houses, properties, works, buildings, machinery, plant, mains, pipes, apparatus, appliances, easements, rights, powers and privileges for the time being belonging to or held, used or enjoyed by the Corporation for or in connection with the provision, storage, transmission, distribution and supply of heat as defined in section 5 (Interpretation of Part II of Act) of this Act;
- “ hovercraft ” has the same meaning as in the Hovercraft Act 1968;
- “ lands ” includes buildings, land covered by water and any interest in land or any easement or right in, to or over land;
- “ level of high water ” means the level of mean high-water springs;
- “ magistrates’ court ” has the same meaning as in the Magistrates’ Courts Act 1952;

1968 c. 59.

1952 c. 55.

“ the markets undertaking ” means the markets undertaking of the Corporation comprising any market from time to time carried on by them within the borough and includes all lands, properties, buildings, apparatus, appliances, rights, powers, authorities and privileges for the time being belonging to or held, used or enjoyed by the Corporation for or in relation to or in connection with markets, cold air stores, ice-making apparatus, slaughterhouses or public slaughterhouses;

“ the port authority ” means the Tees and Hartlepool Port Authority;

“ public service vehicle ” has the same meaning as in section 117 of the Act of 1960;

“ the river ” means the river Tees;

“ statutory undertakers ” means the electricity board, the gas board, the Gas Council, the generating board, the water undertakers and the Post Office or any of them as the case may be;

“ the Tees (Newport) bridge undertaking ” means the Tees (Newport) bridge undertaking of the Corporation and includes the approaches, works, apparatus, appliances, machinery, buildings and conveniences which the Corporation are authorised to maintain and repair and all lands, buildings, apparatus, appliances, rights, powers and privileges for the time being belonging to or held, used or enjoyed by the Corporation for or in relation to or in connection therewith;

“ telegraphic line ” has the same meaning as in the Telegraph Act 1878;

1878 c. 76.

“ tidal work ” means as much of any work vested in the Corporation pursuant to Parts V, VI, VII and VIII of this Act and existing before the commencement of this Act as is on, under or over tidal waters or tidal lands below the level of high water;

“ the transport undertaking ” means the public service vehicle undertaking and the trolley vehicle undertaking of the Corporation and includes all public service vehicles and trolley vehicles for the time being belonging to the Corporation and all lands, properties, works, buildings, machinery, plant, apparatus, appliances, rights, powers and privileges for the time being belonging to or held or used or enjoyed by the Corporation for in relation to or in connection with the said public service vehicles and trolley vehicles or for the purpose of connecting or signalling or telephonic communication with or between any street boxes, pillars, depots or

PART I
—cont.

between officers and servants of the Corporation in connection with the working of public service vehicles and trolley vehicles;

“the transporter bridge undertaking” means the transporter bridge undertaking of the Corporation and includes the approaches, works, apparatus, appliances, machinery, buildings and conveniences which the Corporation are authorised to maintain and repair and all lands, buildings, properties, apparatus, appliances, rights, powers and privileges for the time being belonging to or held, used or enjoyed by the Corporation for or in relation to or in connection therewith;

“the Victoria bridge undertaking” means the Victoria bridge undertaking of the Corporation and includes the approach roads, subsidiary works and conveniences which the Corporation are authorised to maintain and repair, and all lands, rights, powers and privileges for the time being belonging to or held, used or enjoyed by the Corporation for or in relation to or in connection therewith;

“the water undertakers” means the Tees Valley and Cleveland Water Board.

(3) In this Act “vessel” means every description of vessel, however propelled or moved, and includes any thing constructed or used to carry persons or goods by water and—

- (a) without prejudice to the generality of the foregoing, includes a hovercraft on, in or over the water; and
- (b) except for the purpose of levying rates, includes a seaplane on or in the water.

(4) Any reference in this Act to any enactment shall be construed as a reference to that enactment as applied, extended, amended or varied by or by virtue of any subsequent enactment including this Act.

PART II

HEATING UNDERTAKING

Interpretation
of Part II of
Act.

5. In this Part of this Act—

“heat” means heat however supplied and includes hot water and hot air but does not include gas other than non-combustible gas;

“heating fittings” includes radiators, air heaters, water heaters, mains, pipes, meters, taps, cocks, valves, ferrules and other works and apparatus used in connection with and forming part of the heating undertaking;

“ main ” includes mechanical and thermal protection for a main and apparatus used in connection with a main.

PART II
—cont.

6.—(1) Subject to the provisions of this Part of this Act, the Corporation may on any lands belonging to or leased to them erect, lay down, maintain, work and use stations, boiler-houses, mains, pipes and other works for providing, storing, transmitting, distributing and supplying heat and for producing any material, product, matter or thing arising or used in the process of such provision of heat (including the generation of electricity), together with such buildings, boilers, engines, pumps, machinery, lifts, hoists, sidings, electric lines, matters and things of whatever description as may be required by the Corporation to enable them to provide store, transmit, distribute and supply heat, and the Corporation may accordingly on those lands provide, store, transmit, distribute and supply heat and may produce such materials, products, matters and things:

Provided that—

- (a) nothing in this section shall be taken to dispense with the consent of any government department to any use of any lands of the Corporation in any case in which such consent would have been required if this section had not been enacted;
- (b) any electrical works or equipment erected, laid down, maintained, worked or used pursuant to the powers conferred by this section shall be so erected or laid down and so maintained, worked and used as to prevent interference with any telegraphic line belonging to or used by the Post Office or with telecommunication by means of any such line;
- (c) before installing any engines or machinery for the generation of electricity (other than electricity to be used for or in connection with the supply of heat under the powers of this Part of this Act at the works at which it is generated), the Corporation shall consult with the generating board and shall not install such engines or machinery except with the agreement of that board.

(2) Any electricity generated by the Corporation as aforesaid may be sold—

- (a) to the generating board; or
- (b) with the approval of the generating board to the electricity board;

and any electricity so generated and not so sold as aforesaid may be used only for or in connection with the supply of heat under the powers of this Part of this Act at the works at which it is generated or (with the consent of the generating board and the electricity board) elsewhere.

PART II
—cont.

(3) The generating board shall, subject to the terms of any agreement made under paragraph (c) of the proviso to subsection (1) of this section, take all the electricity generated by the Corporation as aforesaid which is not—

- (a) required for or in connection with the heating undertaking;
or
- (b) supplied to the electricity board with the approval of the generating board;

upon such terms and conditions as may be agreed between the Corporation and the generating board or, in default of agreement, determined by arbitration, and the arbitrator in determining the terms and conditions shall have regard to the costs which the generating board would incur in producing the equivalent amount of electricity from their own resources.

(4) Before implementing to any material extent any powers contained in this Part of this Act for providing, installing, transmitting, distributing or supplying heat, the Corporation shall give notice of their proposals to the generating board, the electricity board (together with such information and estimates with regard to their proposals as the generating board or the electricity board may reasonably require), the Gas Council, the gas board, and to such other bodies as the Corporation may consider it appropriate to consult, and if so requested in writing by any of such boards or bodies within fourteen days after the date of the receipt by that board or that body of such notice, the Corporation shall consult with that board or that body as to the Corporation's proposals and any alternative proposals which may within three months after that date be submitted by that board or that body.

Power to buy
heat in bulk.

7.—(1) The Corporation may enter into and carry into effect agreements with any person able to give a supply of heat for the furnishing to the Corporation by such person for the purposes of this Part of this Act of such a supply and—

- (a) any such person may enter into any such agreement accordingly; and
- (b) any such agreement may provide for the provision by the Corporation or for the joint user by them and any other party to the agreement of any works, plant, materials or things required for the purposes of the agreement; and
- (c) the Corporation may let any land which they may possess to any such person to enable that person to supply heat in accordance with the agreement.

(2) The Corporation may for the said purposes also enter into and carry into effect agreements for the taking and use of surplus heat from any generating station or gasworks, refuse destructor or industrial plant, and any person able to supply heat may enter into such an agreement.

8.—(1) The Corporation may supply heat to—

PART II
—cont.

(a) such premises in the borough; and

(b) such premises owned by them outside the borough;

Supply of
heat.

as they may think fit, upon and subject to the provisions of this Part of this Act and such terms and conditions as may be agreed between the Corporation and the owners or occupiers of the premises.

(2) In the exercise of the powers of this section the Corporation shall not show undue preference to any person and shall not exercise any undue discrimination against any person.

(3) Before the Corporation enter into an agreement with the occupier of any premises for the supply of heat to such premises, they shall give notice of their intention so to do to the owner of the premises and, in the event of the supply of heat to such premises being discontinued, notice of such discontinuance shall be given by the Corporation to the owner of such premises.

9.—(1) The following provisions of the Third Schedule to the Water Act 1945 are hereby incorporated with this Part of this Act, namely:—

Power to lay
mains, etc.,
and break
open streets.
1945 c. 42.

Part V (Power to lay mains, etc.);

Section 22 (Power to break open streets);

Section 25 (Protection for railway companies, navigation authorities, tramway undertakers, etc.);

Section 27 (Remedies where undertakers fail to comply with foregoing requirements);

Section 28 (Application of Part VI to verges and streets and highways not maintainable at the public expense); and

Section 93 (Protection for works of navigation authorities and for catchment boards and railways).

(2) For the purposes of this Part of this Act, in the construction of the provisions incorporated by this section—

“ limits of supply ” means the borough;

“ main ” includes a pipe or duct for the transmission of heat whether or not that transmission is for the purpose of the supply of heat;

“ service pipe ” means a pipe or duct for supplying heat from a main to any premises;

“ supplying water ” means supplying heat and “ supply of water ” shall be construed accordingly; and

“ the undertakers ” means the Corporation.

PART II
—cont.

(3) Nothing in the provisions incorporated by this section shall authorise the Corporation to lay down a main outside the borough except for the purpose of—

- (a) giving or facilitating the supplying of heat in accordance with the provisions of this Part of this Act; or
- (b) taking a supply of heat from any works or premises outside the borough.

Power to lay down or erect electric lines, etc.

10.—(1) For the purposes of the heating undertaking or in connection with the use or sale of electricity under the provisions of subsection (2) of section 6 (Works for provision of heat) of this Act the Corporation may lay down or erect electric lines and apparatus—

- (a) in, under or over any street, subject however to the provisions of subsection (3) of this section; and
- (b) with the consent of every owner and occupier of any lands not forming part of a street in, on or over those lands;

and may from time to time inspect, repair, alter or renew or may at any time remove any electric line or apparatus laid down or erected by them whether by virtue of this section or otherwise:

Provided that a consent required for the purposes of this subsection shall not be unreasonably withheld, and any question whether such a consent is or is not unreasonably withheld shall be referred to and determined by the Secretary of State.

(2) (a) Where the Corporation in the exercise of the powers of this section lay down or erect any electric line or apparatus in, on or over any lands not forming part of a street or inspect, repair, alter, renew or remove any electric line or apparatus, laid down or erected in, on or over any such lands they shall from time to time pay compensation to every person interested in that land for any damage done to or injurious affection of that land by reason of the laying down, erection, inspection, repair, alteration, renewal or removal of the electric line or apparatus.

(b) Any dispute as to the amount of compensation to be paid under this subsection shall be determined by arbitration.

1945 c. 42.

(3) The following provisions of the Third Schedule to the Water Act 1945 shall apply with the necessary modifications to the laying down, erection, inspection, repair, alteration, renewal or removal of electric lines and apparatus under this section:—

Section 22 (Power to break open streets);

Section 25 (Protection for railway companies, navigation authorities, tramway undertakers, etc.);

Section 27 (Remedies where undertakers fail to comply with foregoing requirements);

Section 28 (Application of Part VI to verges and streets and highways not maintainable at the public expense); and

PART II
—cont.

Section 93 (Protection for works of navigation authorities and for catchment boards and railways).

(4) For the purpose of such application, the Corporation shall be deemed to be the undertakers and the limits of supply shall be deemed to be the borough.

(5) Without prejudice to the operation of section 4 of the Electric Lighting Act 1888, those provisions of the Electricity 1888 c. 12. (Supply) Acts 1882 to 1936, as amended by the Electricity Act 1947, and in the schedule to the Electric Lighting (Clauses) Act 1947 c. 54. 1899 which, as applied by the Post Office Act 1969, afford protec- 1899 c. 19. tion to the Post Office and its telegraphic lines, shall, so far as 1969 c. 48. applicable, extend and apply to any electric lines or apparatus laid down or erected under this section, and references in those provisions to the electricity board or the undertakers shall be construed as references to the Corporation.

(6) The powers of this section shall not be exercised except with the consent of the electricity board which consent shall not be unreasonably withheld and any dispute as to whether such consent is or is not unreasonably withheld shall be determined by the Secretary of State.

(7) Any regulations made by the Secretary of State under section 60 of the Electricity Act 1947, and any regulations having effect as if they had been made under that section, shall apply to electric lines and apparatus laid down or erected by the Corporation under this section.

11.—(1) In any premises to which the Corporation supply Power to or propose to supply heat they may provide (but not manu- supply fittings. facture), and may supply by way either of sale or hire, any such heating fittings as may be required for or in connection with the supply or utilisation of the heat so supplied, and may install, repair, renew or alter any heating fittings, whether supplied by them or not, and may provide any materials and do any work required in connection with such installation, repair, renewal or alteration.

(2) The Corporation may make such charges as may be agreed or, in default of agreement, as may be reasonable for any heating fittings supplied or any materials provided or work done under this section at the request of the owner or occupier of the premises supplied.

(3) Any heating fittings let for hire by the Corporation and marked or impressed with a sufficient mark or brand indicating the Corporation as the actual owners thereof—

(a) shall not be subject to distress or to the landlord's remedy for rent, nor be liable to be taken in execution

PART II
—cont.

under process of any court or any proceedings in bankruptcy against the person in whose possession the same may be; and

1965 c. 66.

- (b) shall, notwithstanding that they be fixed or fastened to any part of the premises in which they may be situate or to the soil under any such premises, at all times continue to be the property of and (subject to the provisions of the Hire-Purchase Act 1965) removable by the Corporation:

Provided that nothing in this subsection shall affect the valuation for rating of any rateable hereditament.

(4) All heating fittings supplied by the Corporation under any hire-purchase agreement shall, until payment of the final instalment of the purchase money for such fittings, be deemed for the purposes of subsection (3) of this section to be fittings let for hire by the Corporation.

(5) The Corporation shall so adjust the charges to be made under this section that the income therefrom will, taking one year with another, meet any expenditure by them thereunder, including interest upon any moneys borrowed for the purposes thereof, establishment charges and any sums carried to a sinking fund for repayment of moneys so borrowed and the cost of repairs or renewals.

(6) (a) If any person wilfully injures or suffers to be injured any heating fittings belonging to the Corporation he shall be guilty of an offence.

(b) Without prejudice to the foregoing provisions of this subsection, the Corporation may do all such work as is necessary for repairing any injury done and may recover the expenses reasonably incurred by them in so doing from the offender, either as a simple contract debt in any court of competent jurisdiction, or, if the amount does not exceed twenty pounds, summarily as a civil debt.

Heating
charges.

12.—(1) The Corporation may from time to time prescribe a scale of charges (in this section called “heating charges”) for heat supplied to premises under the powers of this Part of this Act and for connecting premises to the heating undertaking and (where premises have been disconnected from the said undertaking) for reconnecting premises thereto, and where heat is so supplied to any premises the heating charges in accordance with the scale shall be payable by the occupier of those premises except in any case where the owner has agreed with the Corporation to pay the same, in which case they shall be payable by the owner.

(2) The heating charges payable by any person may after a demand therefor be recovered from him by the Corporation, either as a simple contract debt in any court of competent

jurisdiction or, if the amount does not exceed twenty pounds, summarily as a civil debt and, where a person fails to pay within seven days after a demand therefor any heating charges payable by him in respect of any premises, the Corporation may cut off the supply of heat to the premises and recover the expenses reasonably incurred by them in so doing in the same manner as the heating charges:

PART II
—cont.

Provided that if, before the expiration of the said seven days, notice is given to them that there is a dispute as to the amount due in respect of the heating charges or as to the liability to pay the same, the Corporation shall not cut off the supply of heat until the dispute has been settled or, on the application of either party, determined by a court of competent jurisdiction.

(3) Without prejudice to any other method of recovery, any heating charges payable by the occupier of any premises of which he is the tenant of the Corporation and connected as aforesaid may be recovered as rent due from him.

13. The Corporation may require any person desiring to take a supply of heat or to be supplied with heating fittings or materials under this Part of this Act to deposit with the Corporation such sum as the Corporation may reasonably require as security for the payment of any moneys which may become due from him to the Corporation in respect of such supply of heat or of any fittings or materials supplied to him in connection therewith.

Security for
payment of
accounts.

14.—(1) The Corporation may, if they think fit, make an allowance by way of discount on all sums of money due to them for the supply of heat or meter rent or for heating fittings or materials supplied at the request of the owner or occupier of the premises from any person who pays the same within such time of the demand thereof as the Corporation think fit to prescribe in that behalf, and notice to that effect shall (if and so long as the Corporation shall allow such discount) be endorsed on every demand note in respect of such charges.

Discount for
prompt
payment.

(2) In the exercise of the powers of this section the Corporation shall not show undue preference to any person and shall not exercise any undue discrimination against any person.

15.—(1) Subject to the provisions of this section, any authorised officer of the Corporation shall, on producing if so required some authenticated document showing his authority, have a right to enter at all reasonable hours any premises to which the Corporation are supplying or have agreed to supply heat under the powers of this Part of this Act, or any premises in or upon which

Power to
enter premises

PART II
—cont.

any heating fittings have been installed for the purpose of or in connection with supplying heat to any premises as aforesaid, for the purpose of—

- (a) inspecting and examining any heating fittings whether belonging to the Corporation or not;
- (b) ascertaining whether there is or has been on or in connection with the premises any contravention of the provisions of this Part of this Act or of any byelaws made thereunder;
- (c) ascertaining whether or not circumstances exist which would authorise the Corporation to take any action or execute any work under this Part of this Act;
- (d) taking any action or executing any work authorised or required by this Part of this Act to be taken or executed by the Corporation:

Provided that, except in cases of emergency arising from defects in any heating fittings, admission to any premises shall not be demanded as of right unless twenty-four hours' notice of the intended entry has been given to the occupier.

(2) If it is shown to the satisfaction of a justice of the peace on sworn information in writing that—

- (a) admission to any premises has been refused or that refusal is apprehended or that the premises are unoccupied or that the occupier is temporarily absent or that the case is one of urgency or that an application for admission would defeat the object of the entry; and
- (b) there is reasonable ground for entry into the premises for any such purpose as aforesaid;

the justice may by warrant under his hand authorise the Corporation by any authorised officer to enter the premises, if need be by force.

(3) An authorised officer of the Corporation entering any premises by virtue of this section or of a warrant issued thereunder may take with him such other persons as may be necessary and, on leaving any unoccupied premises which he has entered by virtue of such a warrant, shall leave them as effectually secured against trespassers as he found them.

(4) Every warrant granted under this section shall continue in force until the purpose for which the entry is necessary has been satisfied.

(5) Any person who, in compliance with the provisions of this section or of a warrant issued thereunder, is admitted into a factory, workshop or workplace shall not disclose to any person, except where such disclosure was made in the performance of his duty, any information obtained by him in the factory, workshop or workplace with regard to any manufacturing process or trade

secret, and if he does so he shall be guilty of an offence and shall be liable to a fine not exceeding one hundred pounds or to imprisonment for a term not exceeding three months.

PART II
—cont.

(6) Nothing in this section shall authorise any authorised officer of the Corporation to enter any premises (other than offices or showrooms) belonging to or used by the generating board or the electricity board or the Gas Council or the gas board for the purposes of or in connection with the generation or supply of electricity or the manufacture, storage or supply of gas (as the case may be).

16.—(1) If any person wilfully and without the consent of the Corporation turns on, opens, closes, shuts off or otherwise interferes with any heating fittings belonging to the Corporation and thereby improperly causes the supply of heat to be interfered with, he shall be guilty of an offence and, whether proceedings be taken against him in respect of his offence or not, the Corporation may recover from him the amount of any damage or loss sustained by them either as a simple contract debt in any court of competent jurisdiction or, if the amount does not exceed twenty pounds, summarily as a civil debt.

Interference
with
apparatus, etc.

(2) If any person wrongfully takes, uses or diverts any heat from any apparatus provided for the purposes of this Part of this Act he shall (without prejudice to any other right or remedy of the Corporation) be guilty of an offence.

17.—(1) The Corporation may make byelaws for preventing the waste, misuse, undue consumption or contamination of, or interference with, the circulation or supply of heat by them under this Part of this Act.

Byelaws for
protection
of heating
undertaking.

(2) Byelaws under this section may include provisions—

(a) prescribing the size, nature, materials, strength and workmanship and the mode of arrangement, connection, disconnection, insulation, alteration and repair of the heating fittings to be used; and

(b) forbidding the use of any heating fittings which are of such a nature or are so arranged or connected as to cause or permit or be likely to cause or permit—

(i) waste, misuse, undue consumption or contamination of or interference with the circulation of heat; or

(ii) reverberation in pipes; and

(c) requiring the testing of fittings, and the making of charges therefor.

(3) If any person contravenes the provisions of any byelaw made under this section, the Corporation may, without prejudice to their right to take proceedings in respect of such contravention,

PART II
—cont.

cause any heating fittings belonging to or used by that person which are not in accordance with the requirements of the byelaws to be altered, repaired or replaced, and may recover the expenses reasonably incurred by them in so doing from the person in default, either as a simple contract debt in any court of competent jurisdiction or, if the amount does not exceed twenty pounds, summarily as a civil debt.

Notice to be given before quitting premises supplied with heat.

18.—(1) If the occupier of any premises supplied with heat by the Corporation quits the premises without giving notice of his intention so to do to the Corporation, he shall be liable to pay to the Corporation all money accruing due for heat supplied by them to the premises and for meter rent up to the next date on which the register of the meter on the premises is usually ascertained or the date from which any subsequent occupier of the premises requires the Corporation to supply heat to the premises, whichever first occurs.

(2) The notice to be given under this section by an occupier of premises shall be given in writing to the address and in the manner specified by the Corporation for the purpose.

(3) There shall be endorsed upon every demand note in respect of heating charges payable to the Corporation—

- (a) the foregoing provisions of this section, or a statement of the effect thereof;
- (b) the address for and manner of service of a notice under this section; and
- (c) the length of notice required by the Corporation.

Corporation not to be exempted from proceedings for nuisance.

19. Nothing in this Part of this Act shall exonerate the Corporation from any indictment, action or other proceedings for nuisance in the event of any nuisance being caused or permitted by them:

Provided that this section shall not apply to the exercise by the Corporation of the powers of section 9 (Power to lay mains, etc., and break open streets) and section 10 (Power to lay down or erect electric lines, etc.) of this Act.

Modification of section 26 of Public Utilities Street Works Act 1950.
1950 c. 39.

20.—(1) In any case in which —

- (a) the Corporation are the operating undertakers within the meaning of section 26 of the Public Utilities Street Works Act 1950 in respect of undertakers' works authorised by this Part of this Act or are the owning undertakers within the meaning of that section in respect of apparatus laid down under the powers of this Part of this Act; and
- (b) either the Post Office, the generating board, the electricity board, the Gas Council, the gas board or the water undertakers are the owning undertakers or (as the case may be) the operating undertakers;

the said section 26 shall be modified as follows:—

PART II
—cont.

- (i) the notice to be given under subsection (2) of the said section by the operating undertakers to the owning undertakers shall be accompanied by plans, sections and particulars of the works;
- (ii) subject to the provisions of the next succeeding subparagraph the said notice shall be given not less than seven days before the works are commenced;
- (iii) on the first occasion on which the Corporation execute undertakers' works under this Part of this Act, and on any subsequent occasion on which the Corporation execute such works extending for a distance of more than one hundred yards, the said notice shall be given not less than twenty-one days before the works are commenced and shall be accompanied by information as to—

(A) the maximum temperatures and pressures at which heat is proposed to be transmitted or distributed by the Corporation by means of such works; and

(B) the measures (if any) proposed to be taken by the Corporation with respect to the securing of the safety of any apparatus of the Post Office or the generating board or the electricity board or the Gas Council or the gas board or the water undertakers from damage or injury arising directly or indirectly from such works and with respect to the insulation of such works so as to prevent the escape of heat therefrom;

- (iv) any question which may arise under the said section, as modified by this section, between the operating undertakers and the owning undertakers shall be determined by arbitration in accordance with section 31 of the said Act of 1950, and the proviso to subsection (2) of that section shall not apply.

(2) In this section any expressions to which meanings are assigned by the said Act of 1950 have the same respective meanings unless there be something in the subject or context repugnant to such construction.

21.—(1) Subject to the provisions of this section the Corporation may affix to any buildings in the borough such brackets, mains, electric lines and attachments (in this section called “attachments”) as may be required for the purposes of the heating undertaking. Attachment of brackets, etc.

(2) The provisions of subsections (2) to (9) of section 45 of and Schedule 4 to the Public Health Act 1961 shall apply to any attachments affixed under subsection (1) of this section as if they 1961 c. 64.

PART II
—cont.

were attachments affixed under subsection (1) of the said section 45 and the said provisions as so applied shall have effect with any necessary modifications including the substitution of “the Corporation” for “a street lighting authority” and the omission from subsection (9) of the definition of “street lighting”.

(3) Nothing in this section shall authorise the Corporation to affix any attachments to—

(a) a building for the time being included in a list published by the Secretary of State under any enactments for the time being in force with respect to ancient monuments without the consent of the Secretary of State; or

(b) a building for the time being included in a list of buildings of special architectural or historic interest compiled by the Secretary of State under section 32 of the Town and Country Planning Act 1962, not being a building to which paragraph (a) of this subsection applies, without the consent of the Secretary of State.

1962 c. 38.

PART III

MARKETS UNDERTAKING

Interpretation
of Part III
of Act.

1955 c. 16.
(4 & 5
Eliz. 2.)

22. In this Part of this Act unless the subject or context otherwise requires—

“the Act of 1955” means the Food and Drugs Act 1955;

“market house” means any market building of the Corporation used in connection with any market for the time being carried on by the Corporation;

“market place” and “cattle market” mean respectively any market place for the time being and the cattle market of the Corporation;

“market stand” means stand, stall, shed, pen, table, compartment, shop, site, standing or station in any market house, market place or cattle market.

Markets
undertaking
to continue
vested in
Corporation.

23.—(1) Notwithstanding the repeal by this Act of the existing enactments, the markets undertaking as it exists immediately before the commencement of this Act shall continue vested in the Corporation and shall be held, used and enjoyed by them.

(2) Notwithstanding the provisions of subsection (1) of this section, the Corporation shall be the market authority for the purposes of sections 51 to 61 of the Act of 1955.

(3) The table of stallages, standages, rents, tolls and other charges specified in Schedule 2 to this Act shall apply to the markets undertaking, as if it were a table approved by the Secretary of State under section 52 of the Act of 1955 and may be amended accordingly.

24. The Corporation without prejudice to the generality of the provisions of the last preceding section shall have the following powers in relation to the markets undertaking, namely :—

PART III
—*cont.*

Powers of
Corporation
as to markets.

- (a) they may continue any market carried on immediately before the commencement of this Act;
- (b) they may from time to time alter the place or places in which the market or any part or parts thereof is or are held and in connection with any such alteration terminate the use of any lands for the purpose of the market;
- (c) they may lay out and improve such lands and erect, alter, enlarge, improve, demolish, reconstruct or rebuild and maintain market houses and other offices or buildings, car parks, works and conveniences;
- (d) they may provide, maintain and let on hire movable stalls, trestles and market stands;
- (e) they may do all such other acts that may be necessary or proper for the purposes of or in connection with the markets undertaking;
- (f) they may make such charges as they think fit for the use of any facilities and equipment provided under this section;
- (g) they may for the aforesaid purposes or any of them or for any purpose of or in connection with any of their markets or the markets undertaking appropriate and use any lands for the time being vested in or belonging to them:

Provided that—

- (A) the powers of the Corporation under paragraph (c) of this section shall not be exercisable in such a manner—
 - (i) as to be at variance with any trust subject to which any lands are held, managed or controlled by the Corporation, without an order of the High Court, or of the Charity Commissioners, or of the Secretary of State, and, where the trust instrument reserves to the donor, or any other person, the power to vary the trust, without the consent of the donor or that other person; or
 - (ii) as to contravene a covenant or condition subject to which a gift or lease of lands has been accepted by, or granted to, the Corporation, without the consent of the donor, grantor, lessor or other person entitled in law to the benefit of the covenant or condition; and
- (B) the powers of the Corporation under paragraph (f) of this section shall not be exercisable in respect of stallages, tolls and charges which the Secretary of State is empowered to approve under section 52 of the Act of 1955 or affect the powers of the Minister of Agriculture, Fisheries and Food under section 73 of the Act of 1955.

PART III

—cont.

Public
notice of
removal of
markets, etc.

25.—(1) At least one month before the Corporation alter any place in which markets are held under the powers of this Act, they shall publish in one or more local newspapers circulating in the borough and by placards affixed to conspicuous places in the borough notice of their intention to alter such market.

(2) Either—

(a) a copy of any such newspaper containing any such notice; or

(b) a photostatic or other reproduction certified by the town clerk to be a true reproduction of a page or part of a page of any such newspaper bearing the date of its publication and containing any such notice;

shall be evidence of the publication of the notice and of the date of the publication.

Power to
lease lands
and stalls.

26.—(1) The Corporation may lease or agree to lease, on such terms and conditions as they think fit, any lands situated in the market, either at a reserved rent or on a fine, or both, for any term not exceeding ninety-nine years.

(2) The Corporation may lease or agree to lease, on such terms and conditions as they think fit, any office, bench, cellar, shop, stall, store, standing place, warehouse, tenement, building or other convenience situate in the market or forming part of or acquired or erected in connection with the market undertaking to any person either at a reserved rent or on a fine or both for any term not exceeding twenty-one years.

Charges to
auctioneers
using the
cattle market.

27. The Secretary of State may, on the application of the Corporation, approve for the purposes of the cattle market of the Corporation a table of charges which the Corporation may demand in respect of the sale by auction at the market of animals.

Traffic
offences on
market roads.
1967 c. 30.
1967 c. 76.

28.—(1) The Act of 1960, the Road Safety Act 1967 and the Road Traffic Regulation Act 1967 shall have effect as if, in the sections thereof mentioned in Schedule 3 to this Act, the expression “road” and the expression “highway” included a market road and as if in the sections thereof mentioned in Part II of Schedule 3 to this Act the expression “police constable” included an officer of the Corporation authorised in that behalf; and any person who commits an offence under any of those sections, as extended by this section, shall be liable to be dealt with as if the offence had been committed under those sections on a road as defined by section 257 of the Act of 1960 and, subject to the provisions of this section, all the provisions of the said Acts, so far as applicable, shall apply accordingly.

(2) If the Corporation by written licence permit the use outside market days and hours of any land in the market, allocated for the time being for car parking, by any person for recreational purposes involving the use of motor vehicles or bicycles, the

provisions of the Act of 1960, the Road Safety Act 1967 and the Road Traffic Regulation Act 1967 mentioned in the said Schedule 3 shall, by virtue of the licence, be suspended for the period of the licence in respect of the land in the market the use of which for such recreational purposes is permitted by the licence.

PART III
—cont.

1967 c. 30.
1967 c. 76.

(3) Regulations or orders made under section 64 or 70 of the Act of 1960 and from time to time in force shall extend and apply to market roads as they apply to roads as defined by section 257 of that Act, and section 64 (2) and section 239 of that Act shall apply accordingly:

Provided that, if no duty is chargeable under the Vehicles (Excise) Act 1962 in respect of a motor vehicle—

1962 c. 13.

(a) by virtue of the provisions of section 6 (6) of that Act; or

(b) by reason only that the motor vehicle is used exclusively on roads which are not public roads within the meaning of that Act;

the said regulations shall not apply in respect of that motor vehicle while it is being driven, or to any person while driving it, on a market road.

29. The Corporation may let for such term as they think fit or grant a licence to use any market stand or other convenience or accommodation in any market in the borough on such terms and conditions as the Corporation think fit.

Power to let
stands, etc.,
in market.

30. If any tenant or licensee shall on demand thereof after the same shall have become due and payable make default in the payment of any rent, stallage or charge for any market stand, the Corporation may enter upon and take possession of that market stand and re-let the same without prejudice to any other remedy for the recovery of such rent, stallage or charge.

Power to take
possession of
market
stands for
non-payment
of rents, etc.

31.—(1) The Corporation may enter into a composition with any person with respect to the payment of any tolls or charges approved or having effect as if approved by the Secretary of State under section 52 of the Act of 1955.

Power to
compound
for payment
of tolls.

(2) In the exercise of the powers of this section the Corporation shall not show undue preference to any person and shall not exercise any undue discrimination against any person.

32. Subject to the provisions of this section the Corporation may, by notice served on any person who, whether as principal or as agent, sells in the market, require him to furnish to them such information, including information as to the quantity and value of articles, commodities or produce dealt in by him, and as to the places of origin of such articles, commodities or produce, as

Power of
Corporation
to require
information.

PART III
—cont.

may be necessary for or incidental to the discharge or exercise by the Corporation of their duties or powers as market undertakers:

Provided that nothing in this section shall enable the Corporation to require any person to furnish information except information relating to articles, commodities or produce dealt in by him in the market.

As to public
meetings, etc.

33. The Corporation may permit any market place or any lands used for the purposes of any market or cattle market, and any open land belonging to them adjoining thereto, to be used as a parking place for vehicles or for public meetings, public services and speaking and public lectures, or for entertainment and dancing, and they may make regulations with respect to the purposes of such use and as to the conduct of persons resorting thereto, and may make such charges for such user as they may from time to time determine, but nothing in this section shall operate to prevent the holding of any market.

Licence for
sale out of
market.

34.—(1) The Corporation may from time to time, if they think fit, grant to any person a licence to sell or expose for sale in a place other than a market place, cattle market or market house or from door to door any commodity or animal in respect of the sale or exposure for sale whereof in any market place or market house or in respect of the user of any stall or other convenience for the sale or exposure for sale whereof in any market place or market house any rent, stallage or charge is leviable by or payable to the Corporation.

(2) Every such licence may (subject to the provisions of subsection (3) of this section) be granted on such terms and conditions as the Corporation think fit and so as to enure for a period not exceeding twelve months and to be revocable in such cases as the Corporation may prescribe.

(3) The Corporation may demand and take for every such licence a sum not exceeding five pounds per annum.

(4) Any person aggrieved by the refusal of the Corporation to grant a licence, or by any term or condition so attached to a licence, in pursuance of the provisions of this section, may appeal to a magistrates' court.

(5) If any person does any act for which such a licence is required without having obtained such a licence or contravenes anything required by a licence granted to him he shall be guilty of an offence and shall be liable to a fine not exceeding two pounds for every day on which any such offence is committed by him.

(6) Nothing in this section shall extend to any person while he is engaged in—

PART III
—cont.

- (a) selling or exposing for sale any article in his own dwelling place or rated place of business not constituting a market;
- (b) selling or exposing or carrying about for sale the produce of his own industry (proof whereof shall lie on the person accused).

35. Every marketable article brought into any market and left therein after the hour of closing (except such as are left in charge of the superintendent of the market) may be taken possession of by the superintendent and if the same, being of a perishable nature, is not claimed within one hour after the closing or, not being of a perishable nature, is not claimed within one month thereafter then, and in every such case, the same may be sold by the Corporation who shall return the surplus proceeds of such sale, after deducting any unpaid rent or stallage due in respect thereof and the expenses of detention and sale, to the owner on demand if such demand is made within one month after the sale but if demand is not so made the proceeds of sale shall be forfeited to the Corporation.

Forfeiture of
articles left
in market.

36. Nothing in this Part of this Act shall interfere with the lawful exercise of their calling by hawkers or pedlars duly licensed or certificated under any Act relating to such calling.

37.—(1) In addition to and without prejudice to any other powers conferred on the Corporation by section 61 of the Act of 1955, the Corporation may make and enforce byelaws with respect to the market for all or any of the following purposes, that is to say:—

- (a) prohibiting or regulating the bringing into the market of any article, commodity or produce intended for sale within the market or of any specified description of any such article, commodity or produce;
- (b) securing the cleanliness of any lands or premises within the market and any vehicle entering the market (including shops, stands and other places and vehicles where articles, commodities or produce are stored, sold or are exposed for sale or inspection) and preventing the accumulation on or in any such lands, premises or vehicle, and securing the removal therefrom, of refuse;
- (c) preventing the outbreak and spread of fire in the market and, in particular, for that purpose—
 - (i) imposing requirements with respect to the provision and maintenance of fire-fighting equipment;
 - (ii) imposing prohibitions, restrictions or requirements with respect to the storage, or the depositing in any place (otherwise than for storage), of such

PART III
—cont.

descriptions of articles, commodities, produce, containers or packing materials as appear to the Corporation to be flammable;

(iii) imposing such prohibitions, restrictions or requirements as appear to the Corporation requisite for securing that no articles, commodities or produce of any description are stored in such manner as to obstruct the use of fire-fighting equipment;

(d) regulating the conduct of persons resorting to the market and, in particular, preserving order therein and preventing damage to, and loss of, property therein;

(e) regulating traffic within the market (except on roads to which the Road Traffic Acts 1960 to 1967 apply) and the movement, speed and parking of vehicles (including hand-propelled vehicles and conveyances) therein.

1933 c. 51.

(2) As respects byelaws made under this section the confirming authority for the purpose of section 250 of the Local Government Act 1933 shall be the Secretary of State.

(3) The following provisions shall have effect in relation to byelaws made under paragraph (a) of subsection (1) of this section:—

(a) The byelaws may grant exemptions from any of the provisions thereof or provide for the grant of such exemptions by such persons as may be specified in the byelaw:

(b) A description of any article, commodity or produce may be framed by reference to any circumstances whatsoever.

PART IV

TRANSPORT UNDERTAKING

Interpretation
of Part IV
of Act.

38. In this Part of this Act—

“highway authority” means—

(a) in the case of a trunk road the Secretary of State or, with his consent, the authority who are for the time being acting as his agent under the Highways Act 1959 with respect to that road;

(b) in the case of any other highway the authority (being either the council of a county, the council of a borough or the council of an urban district) which is responsible for the maintenance of the highway;

“local authority” means the council of a county district;

“trolley vehicle” means a mechanically propelled vehicle which is adapted for use without rails upon roads and which is moved by electrical power transmitted thereto from some external source or in case of emergency or the use of the vehicle on part of any route or during the turning of the vehicle by some other means;

1959 c. 25.

“ trolley vehicle equipment ” means and includes all posts, poles, standards, brackets, cables, conductors, mains, transformers, feeders, wires and other apparatus and equipment for the purpose of working and lighting the trolley vehicles.

PART IV
—cont.

39. Notwithstanding the repeal by this Act of the existing enactments, the transport undertaking as it exists immediately before the commencement of this Act shall continue vested in the Corporation and shall be held, used and enjoyed by them.

Transport undertaking to continue vested in Corporation.

Public service vehicles

40. The Corporation shall continue to be a local authority authorised to run public service vehicles under Part V (Running of public service vehicles by local authorities) of the Road Traffic Act 1930, and may provide such plant, apparatus, appliances and conveniences as may be requisite or expedient for the maintenance, running and equipment of public service vehicles.

Power to run public service vehicles and provide plant, etc. 1930 c. 43.

Trolley vehicles

41. The Corporation may provide, equip and maintain (but shall not manufacture) trolley vehicles and may use the same upon the route in the borough described in Schedule 4 to this Act.

Power to use trolley vehicles.

42. With the consent of the Secretary of State the Corporation may use trolley vehicles along any street which the Corporation think it necessary or convenient to use for the purpose of providing a turning point or, if the distance between the points to be connected does not exceed one mile, of connecting any trolley vehicle route with any depot, garage, building or work of the Corporation and for the purposes of this section the Corporation may exercise the powers and shall be subject to the provisions of this Act relative to the provision, maintenance and use of trolley vehicle equipment:

Power to provide trolley vehicle connecting routes.

Provided that before equipping any trolley vehicle route to include a turning point or before arranging for a new turning point on any route the Corporation shall submit plans of the turning point to the Secretary of State for his approval.

43.—(1) (a) If at any time the Corporation desire to provide, equip, maintain and use trolley vehicles upon any street dedicated to the public use, whether within or outside the borough, not forming part of any trolley vehicle route for the time being authorised, they may make application to the Secretary of State and the Secretary of State is hereby empowered to make an order authorising the use by the Corporation of trolley vehicles subject to such conditions and restrictions (if any) as he may think fit upon any street or streets to which such application relates and containing such incidental provisions as the Secretary of State

Secretary of State may authorise new trolley vehicle routes.

PART IV
—cont.

may deem expedient, and subject to the terms of the order the provisions of this Act shall apply as if the use of trolley vehicles upon such street were authorised by this Act.

(b) No order authorising the use of trolley vehicles on any street in a district outside the borough shall be made without the consent of the local authority of such district and (where the local authority are not the highway authority) without the consent of the highway authority:

Provided that the consent of a highway authority (not being the local authority of the district) shall not be unreasonably withheld, and any question whether or not such consent has been unreasonably withheld shall be determined by the Secretary of State.

1945 c. 18.
(9 & 10
Geo. 6.)

(2) An order made under this section shall be subject to special parliamentary procedure and Schedule 1 to the Statutory Orders (Special Procedure) Act 1945 (which prescribes the notices to be given and other requirements to be complied with before an order is made) shall in its application to any such order have effect as if paragraph 1 of the said Schedule included a provision requiring the Corporation to comply with any direction which may be given by the Secretary of State as to posting and maintaining notices giving the purport of the application in relation to any street or streets to which it relates in that street or in those streets.

1878 c. 76.

(3) The expression “Act of Parliament” in section 7 of the Telegraph Act 1878 (which makes provision as to work done in pursuance of Acts of Parliament involving any telegraphic lines) shall be construed as including any order made under this section authorising the execution of works.

As to
electrical
works.

1870 c. 78.

44.—(1) The Corporation may in, under or over the surface of the streets along or adjoining those along which they are or may be authorised to run the trolley vehicles or in which it may be necessary so to do in order to connect the apparatus and equipment for working such vehicles with any generating station, place, erect and maintain all necessary and proper standards, brackets, conductors, mains, cables, wires, posts, poles and any other necessary or convenient apparatus and equipment for the purpose of working the trolley vehicles by electrical power, and may for that purpose, subject to the provisions contained in Part II of the Tramways Act 1870 and in this Act, open and break up any such street, and any sewers, drains, water or gas pipes, tubes, wires, telephonic and telegraphic apparatus therein or thereunder and may supply electrical energy outside the borough for the purpose of working the trolley vehicles:

Provided that—

(a) no post or other apparatus shall be erected upon the carriageway of any street, except with the consent of the Secretary of State;

- (b) no advertisements other than notices referring to the running of the trolley vehicles of the Corporation shall, without the consent of the highway authority, be exhibited on any post or other apparatus used for working such vehicles.

(2) Nothing in this section shall extend to or authorise any interference with any works of any undertakers within the meaning of the Electricity (Supply) Acts 1882 to 1936, to which the provisions of section 15 of the Electric Lighting Act 1882 apply. 1882 c. 56.

45. The following provisions shall apply to the use of electrical power under this Part of this Act unless such power is entirely contained in and carried along with the trolley vehicles:—

Special provisions as to use of electrical power.

- (1) The Corporation shall employ either insulated returns or uninsulated metallic returns of low resistance:
- (2) The Corporation shall take all reasonable precautions in constructing, placing and maintaining their electric lines and circuits and other works of all descriptions and also in working their undertaking so as not injuriously to affect by fusion or electrolytic action any gas or water pipes or other metallic pipes, structures or substances or to interfere with the working of any wire, line or apparatus from time to time used for the purpose of transmitting electrical power or of telegraphic, telephonic or electric signalling communication or the currents in such wire, line or apparatus:
- (3) The electrical power shall be used only in accordance with the regulations of the Secretary of State and in such regulations provision shall be made for preventing fusion or injurious electrolytic action of or on gas or water pipes or other metallic pipes, structures or substances and for minimising as far as is reasonably practicable injurious interference with the electric wires, lines and apparatus of other parties and the currents therein whether such lines do or do not use the earth as a return:
- (4) The Corporation shall be deemed to take all reasonable precautions against interference with the working of any wire, line or apparatus if and so long as they adopt and employ at the option of the Corporation either such insulated returns or such uninsulated metallic returns of low resistance and such other means of preventing injurious interference with the electric wires, lines and apparatus of other parties and the currents therein as may be prescribed by the regulations of the Secretary of State and in prescribing such means the Secretary of State shall have regard to the expense involved and to the effect thereof upon the commercial prospects of the undertaking:

PART IV
—cont.

(5) If any difference arises between the Corporation and any other party with respect to anything hereinbefore in this section contained such difference shall unless the parties otherwise agree be determined by the Secretary of State or at the option of the Secretary of State by an arbitrator to be appointed by the Secretary of State.

Mechanical power works to be subject to section 30 of Tramways Act 1870.

1870 c. 78.

Corporation to have exclusive right of using apparatus for working trolley vehicles.

Application of certain provisions of Tramways Act 1870 to trolley vehicles.

46. All works to be executed by the Corporation in any street for working trolley vehicles by mechanical power in pursuance of the powers of this Act shall be deemed to be works of a tramway subject in all respects to the provisions of section 30 of the Tramways Act 1870 as if they had been therein expressly mentioned.

47. Subject to the provisions of this Act the Corporation shall have the exclusive right of using any apparatus provided, erected or maintained by them for the purpose of working the trolley vehicles, and any person (except by agreement with the Corporation) using the said apparatus shall be guilty of an offence.

48. The following provisions of the Tramways Act 1870 are hereby incorporated with this Act and shall apply to the provision, maintenance and running of trolley vehicles authorised by this Act, and such provisions shall be read and have effect as if the works to be constructed in the footpaths or carriageways of the streets for moving the trolley vehicles by electrical power were tramways and as if the said trolley vehicles were carriages used on tramways:—

- | | |
|------------|--|
| Part II | (Relating to the construction of tramways), except sections 25, 28 and 29; |
| Section 46 | (Byelaws by local authority: Promoters may make certain regulations); |
| Section 47 | (Penalties may be imposed in byelaws); |
| Section 48 | (Power to local authority to license drivers, conductors, &c.); |
| Section 49 | (Penalty for obstruction of promoters in laying out tramway); |
| Section 51 | (Penalty on passengers practising frauds on the promoters); |
| Section 53 | (Penalty for bringing dangerous goods on the tramway); |
| Section 55 | (Promoters or lessees to be responsible for all damages); |
| Section 56 | (Recovery of tolls, penalties, &c.); |
| Section 57 | (Right of user only); |
| Section 60 | (Reserving powers of street authorities to widen, &c., roads); and |
| Section 61 | (Power for local or police authorities to regulate traffic in roads). |

49.—(1) Notwithstanding anything in this Act contained if any of the works authorised to be executed by this Act involves or is likely to involve any alteration of any telegraphic line belonging to or used by the Post Office the provisions of section 7 of the Telegraph Act 1878 shall apply (instead of the provisions of section 30 of the Tramways Act 1870) to any such alteration.

PART IV
—cont.

For protection of Post Office.

1878 c. 76.

1870 c. 78.

(2) In the event of the trolley vehicles authorised by this Act being worked by electricity the following provisions shall have effect:—

- (a) The Corporation shall construct their electric lines and other works of all descriptions and shall work their undertaking in all respects with due regard to the telegraphic lines from time to time used or intended to be used by the Post Office and the currents in such telegraphic lines and shall use every reasonable means in the construction of their electric lines and other works of all descriptions and the working of their undertaking to prevent injurious affection whether by induction or otherwise to such telegraphic lines or the currents therein. Any difference which arises between the Post Office and the Corporation as to compliance with this paragraph shall be determined by arbitration:
- (b) If any telegraphic line belonging to or used by the Post Office is injuriously affected by the construction by the Corporation of their electric lines and works or by the working of the undertaking of the Corporation the Corporation shall pay the expense of all such alterations in the telegraphic lines belonging to or used by the Post Office as may be necessary to remedy such injurious affection:
- (c) Before any electric line is laid down or any act or work for working the trolley vehicles by electricity (other than repairs) is done within ten yards of any part of a telegraphic line belonging to or used by the Post Office the Corporation or their agents not more than twenty-eight nor less than fourteen days before commencing the work shall give written notice to the Post Office specifying the course of the line and the nature of the work including the gauge of any wire and the Corporation and their agents shall conform with such reasonable requirements (either general or special) as may from time to time be made by the Post Office for the purpose of preventing any telegraphic line belonging to or used by the Post Office from being injuriously affected by the said act or work. Any difference which arises between the Post Office and the Corporation as to any requirement so made shall be determined by arbitration:

PART IV
—cont.

(d) If any telegraphic line belonging to or used by the Post Office situate within one mile of any portion of the works of the Corporation is injuriously affected and he is of opinion that such injurious affection is or may be due to the construction of the Corporation's works or to the working of their transport undertaking the appropriate telephone manager or any person appointed in writing by him may at all times when electrical energy is being generated by the Corporation enter any of the Corporation's works for the purpose of inspecting the Corporation's plant and the working of the same and the Corporation shall in the presence of such telephone manager or such appointed person as aforesaid make any electrical tests required by the Post Office and shall produce for the inspection of the Post Office the records kept by the Corporation pursuant to the regulations of the Secretary of State.

(3) In the event of any contravention of or wilful non-compliance with this section by the Corporation or their agents the Corporation shall be guilty of an offence and shall be liable either to a fine not exceeding ten pounds for every day during which such contravention or non-compliance continues or if the telecommunication is wilfully interrupted to a fine not exceeding fifty pounds for every day on which such interruption continues:

Provided that nothing in this section shall subject the Corporation or their agents to a fine under this section if they satisfy the court that the immediate doing of any act or the execution of any work in respect of which the offence is alleged to have been committed was required to avoid an accident or otherwise was a work of emergency and that they served on the Post Office a notice of the execution thereof stating the reason for doing or executing the same without previous notice.

(4) For the purposes of this section a telegraphic line belonging to or used by the Post Office shall be deemed to be injuriously affected by an act or work if telecommunication by means of such line is, whether through induction or otherwise, in any manner affected by such act or work or by any use made of such work.

1878 c. 76. (5) For the purposes of this section and subject as therein provided sections 2, 10, 11 and 12 of the Telegraph Act 1878 shall be deemed to be incorporated with this Act.

1868 c. 119. (6) Any question or difference arising under this section which is directed to be determined by arbitration shall be determined by an arbitrator appointed by the Secretary of State on the application of either party whose decision shall be final and sections 30 to 32, both inclusive, of the Regulation of Railways Act 1868 shall apply in like manner as if the Corporation or their agents were a company within the meaning of that Act.

(7) Nothing in this section contained shall be held to deprive the Post Office of any existing right to proceed against the Corporation by action or otherwise in relation to any of the matters aforesaid.

PART IV
—cont.

(8) In this section the expression “ the Corporation ” includes their lessees and any person owning, working or running carriages on the trolley vehicle route.

50.—(1) The trolley vehicles and the electrical equipment thereof used by the Corporation under the authority of any enactment shall be of such form, construction, weight and dimensions as the Secretary of State may approve and no trolley vehicle shall be used by the Corporation which does not comply with the requirements of the Secretary of State.

Approval of
trolley
vehicles by
Secretary of
State.

(2) Before applying to the Secretary of State for his approval of the weight of any trolley vehicles to be used upon any road which crosses a bridge belonging to and repairable by the British Railways Board the Corporation shall give to that board notice of the weight of the trolley vehicles proposed to be used by them and the Secretary of State shall consider and determine after such inquiry as he may think fit any objections which may be submitted by that board to him on the ground that the strength of such bridge is insufficient to carry trolley vehicles of such weight:

Provided that notice of such objections shall be forwarded by that board to the Corporation at the same time as they are submitted to the Secretary of State.

51. The trolley vehicles of the Corporation shall not be deemed to be motor cars or light locomotives within the meaning of the Act of 1960 or of the regulations made thereunder.

Trolley vehicles
not to be
deemed light
locomotives
or motor cars.

52. Nothing in this Part of this Act shall exempt the Corporation from any duties of excise payable by law on licences to be taken out for the trolley vehicles authorised by this Act as carriages or light locomotives or hackney carriages.

Duties on
licences for
trolley
vehicles.

53.—(1) The Corporation may enter into agreements with any person with respect to the working of trolley vehicles for all or any of the following purposes, that is to say:—

Power to
lease and
make agree-
ments for
provision and
working, etc.,
of trolley
vehicles and
interchange
of traffic.

(a) the provision of electrical equipment, maintenance, management and repair of the trolley vehicles by this Act authorised;

(b) the use, working and leasing of any such trolley vehicles and the conveyance of traffic thereon;

(c) the supply of electrical energy for working any such trolley vehicles;

PART IV
—cont.

- (d) the interchange, accommodation, conveyance, transmission and delivery of traffic arising from or destined for the respective undertakings of the contracting parties;
- (e) the payment, collection and apportionment of tolls, fares, rates and charges, rent or other receipts arising from such respective undertakings:

Provided that for the purpose of calculating the maximum fares, rates and charges payable in respect of passengers and parcels conveyed partly on the trolley vehicles by this Act authorised and partly on the trolley vehicles of the other party contracting with the Corporation such trolley vehicles shall during the continuance of any such lease or agreement be deemed to be one system.

(2) Any agreement under paragraph (b) of subsection (1) of this section shall be subject to the approval of the Secretary of State and every such agreement and any lease made in pursuance thereof shall be terminable by any party thereto at the expiration of any term therein specified not exceeding twenty-one years from the date thereof but may be renewed for a like term at the expiration of any such term and of every subsequent term for which the same may from time to time be renewed.

(3) Any electrical energy supplied under this section or any agreement made thereunder shall be so supplied and any works for the purpose of such supply shall be so constructed as to prevent any interference with any telegraphic line belonging to or used by the Post Office or with telecommunication by means of any such line.

Passengers'
luggage.

54. Every passenger travelling upon the trolley vehicles of the Corporation may take with him his personal luggage not exceeding fifty-six pounds in weight without any charge being made for the carriage thereof provided that such luggage remains under the personal charge of the passenger and is of a description not to annoy or inconvenience other passengers.

Carriage of
goods, etc.

55. The Corporation shall not be bound to carry on their trolley vehicles anything other than passengers and personal luggage referred to in section 54 (Passengers' luggage) of this Act.

Stopping and
starting
places.

56. The Corporation may appoint the places from which the trolley vehicles of the Corporation shall start or at which they may stop for the purposes of taking up or setting down passengers.

Lost property.
S.R.O. 1934
1268.

57. The Public Service Vehicles (Lost Property) Regulations 1934 shall have effect as though the expression "public service vehicles" included trolley vehicles of the Corporation.

58. Section 147 of the Act of 1960 shall have effect as though the expression “ public service vehicles ” included trolley vehicles of the Corporation and any regulations for the time being in force under the said section shall with any necessary adaptation and subject to any express provision of the regulations be construed accordingly.

PART IV
—cont.

Regulations as to conduct of passengers in trolley vehicles.

59. If any person wilfully does or causes to be done with respect to any apparatus used for or in connection with the working of any of the trolley vehicles by this Act authorised anything which is calculated to interfere with the maintenance or working of such trolley vehicles or to cause injury to any person he shall (without prejudice to any proceedings by way of indictment or otherwise to which he may be subject) be guilty of an offence.

Penalty for malicious damage.

Abandonment of trolley vehicles

60.—(1) The Corporation may abandon or discontinue a trolley vehicle route or part thereof either temporarily or permanently:

As to abandonment of trolley vehicles.

Provided that no trolley vehicle route or part thereof shall be abandoned or discontinued by the Corporation until the Corporation have provided public service vehicles to be operated on the route or the part thereof so proposed to be abandoned or discontinued or on such other route in lieu thereof as shall be certified by the Secretary of State to be a route in substitution for the trolley vehicle route proposed to be abandoned or discontinued.

(2) The Corporation may take up and remove and use or dispose of the equipment, works and apparatus provided in connection therewith.

(3) Nothing in this section shall be in derogation of the provisions of Part III (Public service vehicles) of the Act of 1960.

61. As from the date on which and so long as a service of public service vehicles is provided by the Corporation in lieu of a trolley vehicle service on any trolley vehicle route, the revenue of the trolley vehicle undertaking shall (to such extent as the Corporation may from time to time determine) cease to be charged with any expenses incurred by the Corporation on or in connection with the maintenance and repair of roads along that route.

As to liability for repair of works.

General

62.—(1) Notwithstanding anything contained in any enactment but subject to the provisions of Part III (Public service vehicles) of the Act of 1960, the Corporation may on any occasion—

Power to reserve vehicles for special purposes.

(a) run and reserve—

(i) trolley vehicles on any of the routes of the trolley vehicles of the Corporation; and

PART IV
—cont.

(ii) public service vehicles on any of the routes of the public service vehicles of the Corporation;

or elsewhere whether within or outside the borough for any special purpose which the Corporation may consider necessary or desirable;

(b) run temporary and special services of public service vehicles along any route outside the borough with the consent of the local and highway authorities.

(2) During the running of such special trolley vehicles or public service vehicles the Corporation shall maintain a reasonably sufficient ordinary service of trolley vehicles or public service vehicles.

(3) (a) Where a trolley vehicle or a public service vehicle has been reserved for any special purpose and a conspicuous notice to that effect has been placed upon the vehicle no person other than a person for whose conveyance the vehicle is reserved shall enter or attempt to enter such vehicle.

(b) Any person who contravenes the provisions of this section shall be guilty of an offence.

Attachment
to lamp-posts,
etc., of signs
indicating
stopping
places.

63.—(1) The Corporation may attach to any lamp-post, pole, standard or other similar erection erected on or in the street on or near to the route of any of their trolley vehicles or public service vehicles signs or directions indicating the position of stopping places for trolley vehicles or public service vehicles:

Provided that in cases where the Corporation are not the owners of such lamp-post, pole, standard or similar erection they shall give notice in writing of their intention to attach thereto any such sign or direction and shall make compensation to the owner for any damage or injury occasioned to such lamp-post, pole, standard or similar erection by such attachment, and the Corporation shall indemnify the said owner against any claim for damage occasioned to any person or property by or by reason of such attachment.

(2) Nothing in this section shall be deemed to require the said owner to retain any such lamp-post, pole, standard or similar erection when no longer required for his purposes.

(3) The Corporation shall not attach any such sign or direction to any pole, post or standard or other similar erection belonging to or used by the Post Office or the electricity board, except with the consent in writing of the Post Office or the electricity board as the case may be.

(4) The exercise of the powers conferred by this section shall be subject to the provisions of the Road Traffic Regulation Act

1967, and to any regulations made or any general or other directions given by the Secretary of State in pursuance of the said provisions.

PART IV
—cont.
1967 c. 76

(5) The Corporation shall not attach any such sign or direction to any lamp-post, pole, standard or other similar erection which is for the time being included in a list published by the Secretary of State under any enactment for the time being in force with respect to ancient monuments without the consent of the Secretary of State.

64.—(1) Where any tree overhangs any street along their trolley vehicle or public service vehicle routes which may in any way interfere with the construction or working of the trolley wires or with the clear and safe passage of trolley vehicles or public service vehicles and the passengers thereon, the Corporation may serve a notice on the owner of the tree or on the occupier of the premises on which such tree is growing requiring him to lop the tree within seven days so as to prevent such obstruction or interference, and in default of compliance the Corporation may themselves carry out the requisition of their notice doing no unnecessary damage. Trees over-hanging streets.

(2) Any person aggrieved by any requirement of the Corporation under this section may appeal to a magistrates' court within seven days after the service of such notice, provided he gives twenty-four hours' written notice of such appeal and of the grounds thereof to the town clerk, and the court shall have power to make such order as the court may think fit, and to award costs.

(3) Notice of the right to appeal shall be endorsed on every requirement of the Corporation under this section.

(4) The reasonable expenses incurred by any person in carrying out the requisition of any notice served under subsection (1) of this section shall be repaid to him by the Corporation from the revenue of the transport undertaking.

65. The Corporation may for the purpose of regulating and facilitating the traffic on market days or for the execution of any works by the Corporation or during the time of any public meeting, procession or demonstration or for any other purpose which the Corporation having regard to the good government of the borough or the safety of the public may deem necessary order that the working of the trolley vehicle system or any part thereof or the running of public service vehicles on any route or part thereof respectively shall be stopped, delayed or suspended but so that such stoppage, delay or suspension shall continue only so long as may reasonably be necessary for the purposes aforesaid or any of them and the Corporation shall not be liable to pay Power to Corporation to suspend running of vehicles.

PART IV
—cont.

compensation for damage in respect thereof. The provisions of this section shall not extend to enable the Corporation to order the stoppage, delay or suspension of any public service vehicles other than those of the Corporation.

Cloakrooms,
etc.

66.—(1) The Corporation may provide cloakrooms and rooms or sheds for the storage of bicycles, tricycles and other vehicles at any depot or building used by them in connection with the transport undertaking and at any places on the routes of the trolley vehicles or public service vehicles of the Corporation, and the Corporation may make charges for the use of such cloakrooms, rooms and sheds and for the deposit of articles and things and bicycles, tricycles and other vehicles therein, but shall not use for the purpose any part of the street without the consent of the highway authority.

(2) Any consent required by the foregoing subsection shall not unreasonably be withheld but may be given subject to a condition that the Corporation shall at their own expense remove anything placed in a street under the powers conferred by this section if reasonably required to do so by the person giving the consent.

(3) Any question whether a consent required by this section has been unreasonably withheld or has been given subject to unreasonable conditions shall—

- (a) in the case of a consent of the Secretary of State be referred to and determined by arbitration;
- (b) in the case of any other consent be referred to and determined by the Secretary of State.

(4) Nothing in this section shall relieve the Corporation from liability for damage caused by them to any apparatus belonging to or maintained by the Gas Council or the gas board or the water undertakers in the exercise of the powers of this section and the said powers shall be so exercised as not to obstruct or render less convenient so far as reasonably practicable the access to any such apparatus.

(5) No cloakroom or other room or shed shall be erected or maintained in any street so as to interfere with or render less convenient the access to or exit from any station or depot of the British Railways Board except with the consent in writing of that board which consent shall not be unreasonably withheld nor except with the like consent on any bridge carrying any street over any railway of the said board.

Payment of
fares, rates
and charges.

67. The fares, rates and charges authorised in respect of the transport undertaking shall be paid to such persons and at such places upon or near to the trolley vehicles or public service vehicles by this Act authorised and in such manner and under such regulations as the Corporation may by notice to be annexed to the list of fares, rates and charges appoint.

68.—(1) (a) The Corporation may provide and maintain on—

PART IV
—cont.

(i) any parking place provided by the Corporation under section 28 (Power of local authorities to provide parking places) of the Road Traffic Regulation Act 1967 and appointed under section 33 (Omnibus and coach stations) of that Act as a station for public service vehicles;

Prepayment
of fares and
sale of tickets.

1967 c. 76.

(ii) (with the consent of the local authority concerned) any parking place provided by a local authority under section 28 (Power of local authorities to provide parking places) of the Road Traffic Regulation Act 1967 and appointed under section 33 (Omnibus and coach stations) of that Act as a station for public service vehicles; and

(iii) any private land by agreement with the owner thereof ;

offices, kiosks and other buildings for the purpose of selling tickets entitling persons to travel on any public service vehicle or trolley vehicle operated by the Corporation.

(b) The Corporation may in association with any shelter or other accommodation provided by them in any street forming part of an authorised route of the Corporation, provide and maintain an office, kiosk or other building for the purpose of selling such tickets as aforesaid.

(2) The Corporation shall not exercise the powers of this section in any district outside the borough without the consent of the local authority of such district, and (where the local authority are not the highway authority) the Corporation shall not exercise the powers of paragraph (b) of subsection (1) of this section on any street in such district without the consent of the highway authority:

Provided that—

(a) the consent of the local authority may be given subject to any conditions which may be agreed between the local authority and the Corporation; and

(b) the consent of the highway authority (not being the local authority of the district) shall not be unreasonably withheld and any question as to whether or not such consent has been unreasonably withheld shall be determined by the Secretary of State.

(3) In this section “ authorised route ” means—

(a) in relation to public service vehicles any route authorised for public service vehicles by any enactment or by the traffic commissioners; and

PART IV
—cont.

- (b) in relation to trolley vehicles any route authorised for trolley vehicles by any enactment or by the Secretary of State.

Power to require intending passengers to wait in lines or queues.

69. For the better regulation of persons desiring to travel in the trolley vehicles or public service vehicles of the Corporation the Corporation may erect and maintain barriers and posts at any stopping place or terminus and for that purpose may with the consent of the highway authority use part of the street and the Corporation may make byelaws requiring persons waiting to enter the trolley vehicles or public service vehicles of the Corporation at any stopping place or terminus to wait in lines or queues and to enter such cars, vehicles or public service vehicles in the order in which they stood in such line or queue.

Byelaws as to the purchase of tickets and use of stations, etc.

70.—(1) The Corporation may make and enforce byelaws for—

- (a) regulating the conduct of persons waiting to purchase tickets at any office, kiosk or other building provided in accordance with the provisions of section 68 (Prepayment of fares and sale of tickets) of this Act and the priority of obtaining such tickets:

Provided that before making any byelaws under this paragraph which will have effect in any district outside the borough the Corporation shall send a copy of the draft of the byelaws to the local authority of that district and to the chief constable of the county in which such district is situate each of whom shall be entitled to make representations to the Corporation with respect thereto and when submitting any such byelaws to the Secretary of State for confirmation the Corporation shall send to the said Secretary of State a copy of such representations and a statement showing the effect (if any) given to such representations;

- (b) prohibiting any person from entering any public service vehicle or trolley vehicle operated by the Corporation at any places where the Corporation have provided any office, kiosk or other building in accordance with the provisions of the said section 68 of this Act until such person has purchased a ticket for the journey to be made by such public service vehicle or trolley vehicle;

- (c) regulating the conduct of persons using—

(i) public service vehicle and trolley vehicle stations, shelters and conveniences provided by the Corporation; and

(ii) other premises forming part of the transport undertaking of the Corporation to which the public have access;

(d) prescribing the manner in which the public service vehicles and trolley vehicles operated by the Corporation are to be entered and left;

(e) prohibiting the use by any unauthorised person of apparatus or equipment on any public service vehicle or trolley vehicle operated by the Corporation.

PART IV
—cont.

(2) Any byelaw made under paragraph (a) of subsection (1) of this section may require queues or lines to be formed and kept by the persons waiting and the Corporation may erect and maintain such fences, barriers and posts as appear to the Corporation to be necessary for the purpose of securing compliance with any such byelaw.

(3) The Corporation shall not erect any fences, barriers or posts under the powers of subsection (2) of this section—

(a) in any street outside the borough without the consent of the local authority of the district and (where the local authority are not the highway authority) without the consent of the highway authority; or

(b) on any private land without the consent of the owner:

Provided that the consent of the highway authority (not being the local authority of the district) shall not be unreasonably withheld and any question as to whether or not such consent has been unreasonably withheld shall be determined by the Secretary of State.

71. Nothing in this Part of this Act shall prejudice the powers of the Secretary of State under Parts II and III of the Transport Act 1968.

Saving for
Transport
Act 1968.
1968 c. 73.

PART V

TRANSPORTER BRIDGE UNDERTAKING

72. In this Part of this Act—

“the transporter bridge” means the Transporter Bridge, Middlesbrough;

Interpretation
of Part V
of Act.

“deposited plans and sections of 1907” means the plans and sections deposited in respect of the Bill for the Middlesbrough Corporation (Transporter Bridge) Act 1907.

1907 c. xx.

73.—(1) Notwithstanding the repeal by this Act of the existing enactments, the transporter bridge undertaking as it exists immediately before the commencement of this Act shall continue vested in the Corporation and may be held, used and enjoyed by them.

Transporter
bridge to
continue
vested in
Corporation.

PART V
—cont.

(2) Subject to the provisions of this Act, the Corporation may—

(a) maintain the transporter bridge and the subsidiary works and, in connection with the transporter bridge and as part and for the services thereof, provide, maintain and repair subsidiary works within the limits of deviation shown on the deposited plans and sections of 1907; and

(b) work the transporter bridge by electric or other power.

(3) The Corporation shall operate the transporter bridge for the purpose of carrying across the river public service vehicles and other vehicles, animals, goods, merchandise and other things and pedestrians and all traffic carried by means of the transporter bridge may be conveyed upon any suspended car or platform.

For protection
of telegraph
and telephone
wires.
1899 c. 19.

74.—(1) Section 20 (For protection of telegraphic and telephonic wires) of the Schedule to the Electric Lighting (Clauses) Act 1899 shall extend and apply to the use of electrical power under this Part of this Act.

(2) If the Corporation use electrical power for the purposes of working the transporter bridge such electrical power shall be so supplied and used as to prevent any interference with any telegraphic line belonging to or used by the Post Office or with telecommunication by means of any such line or communication by means of any radio telephone apparatus of the port authority.

Apparatus
may be
carried across
bridge.

75. The Corporation may carry and may, on such terms and conditions and for such consideration as they think fit, allow any other public authority, statutory undertaker or person to carry apparatus on, over or along the bridge.

Regulating
mooring of
vessels near
bridge.

76.—(1) No vessel shall be anchored or moored under or for a distance of ten yards of any tower or pier connected with the transporter bridge or in such a manner as to hinder or interfere with the proper working of the transporter bridge.

(2) No person shall navigate any vessel under or near the transporter bridge in such a manner as to cause unnecessary obstruction to the working thereof.

(3) Any person who contravenes the provisions of this section shall be guilty of an offence.

(4) The provisions of this section shall not apply to any vessels—

(a) using wharfs or landing places belonging to the Corporation; or

(b) using the public landing place at the northern end of Ferry Road, Middlesbrough, constructed by the port authority; or

(c) used in dredging operations by the port authority:

Provided that any dredging in the river across the line or fairway of the transporter bridge over the river shall be carried out so as not unnecessarily to interfere with the use of the transporter bridge.

PART V
—cont.

77.—(1) The transporter bridge shall be maintained and worked in such a manner as to give absolute priority to all vessels navigating the river over all traffic passing by means of the transporter bridge. Vessels to have priority.

(2) If the Corporation at any time fail to give such absolute priority they shall be guilty of an offence and shall be liable to a fine not exceeding fifty pounds in addition to the right of all persons to recover damages or compensation in respect of any injury or damage to persons or property arising from such failure.

78.—(1) The suspended car or platform shall not exceed sixty feet in length and forty feet in width without the consent of the port authority. Conditions as to operation of car.

(2) The passage of the suspended car or platform across the river shall not occupy a longer time than two minutes.

(3) The Corporation shall for every breach of the provisions of subsection (2) of this section except in case of emergencies or force majeure be guilty of an offence.

79. Nothing in this Part of this Act shall be construed as creating any exclusive rights of conveyance but all persons shall be entitled to use the transporter bridge subject to the byelaws and regulations made by the Corporation and upon payment of the tolls. Use of transporter bridge.

80.—(1) Subject to the provisions of this section the Corporation may demand, take and recover any tolls not exceeding the sums mentioned in Schedule 5 to this Act or such other tolls as may from time to time be authorised for the use of the transporter bridge or suspended car or platform: Power to take tolls.

Provided that—

(a) the tolls shall be such as may be reasonable to enable the Corporation to exercise and perform their statutory functions in connection with the transporter bridge undertaking; and

(b) the tolls specified in Schedule 5 to this Act may from time to time be altered by an order made by the Secretary of State in exercise of the powers conferred on him by section 6 of the Transport Charges &c. (Miscellaneous Provisions) Act 1954.

1954 c. 64.

PART V
—cont.

(2) A list of all the tolls from time to time payable in accordance with this Part of this Act shall be displayed in conspicuous positions on the transporter bridge and where such tolls shall be payable.

(3) The Corporation may make regulations as to the places, time and the manner in which the tolls authorised by this Part of this Act shall be paid.

(4) Any person who—

(a) knowingly or wilfully refuses or neglects to pay any toll when the same shall be demanded from him by virtue of this Part of this Act; or

(b) wilfully pulls down, defaces or destroys any such displayed list of tolls;

shall be guilty of an offence.

(5) In the exercise of the powers of this and the next section the Corporation shall not show undue preference to any person and shall not exercise any undue discrimination against any person.

(6) Any dispute which arises as to the amount of the tolls due to the Corporation by virtue of this Part of this Act shall be determined by the county court.

(7) The Corporation may recover such tolls from the person, either as a simple contract debt in any court of competent jurisdiction or, if the amount does not exceed twenty pounds, summarily as a civil debt.

Passengers'
luggage.

81. Any passenger travelling by the transporter bridge may take with him his personal luggage carried by hand not exceeding sixty pounds in weight without any charges being made for the carriage thereof.

Disputed
weight, etc.

82. If any dispute arises between a toll collector or other officer of the Corporation and the owner or person having the charge of any articles liable to tolls, respecting the weight, quantity or nature of such articles then the toll collector or other officer may lawfully detain and examine, gauge or otherwise measure the articles and—

(a) if the articles appear to be of a weight or quantity greater, or of a nature other, than has been stated in the account given thereof, then the person who has given such account, or the respective owners of the articles, as the case may be, shall pay the costs of the examination, gauging or measuring;

(b) if the articles appear to be of the same or less weight or quantity than has been stated in the account, and of the nature stated therein, then the Corporation shall pay

the costs of the examination, gauging or measuring, and shall also pay to the owner or person having charge of the articles such damages (if any) as shall appear to the county court to have arisen from such detention.

PART V
—cont.

83.—(1) The Corporation may lease to any person for any term not exceeding twenty-one years on such terms and conditions as they think fit—

Power to
lease bridge
or tolls.

- (a) the transporter bridge and the subsidiary works; or
- (b) the tolls authorised by this Part of this Act.

(2) During the continuance of any lease made under the preceding subsection the lessee, to the extent provided in the lease, shall have and may exercise all or any of the powers conferred upon the Corporation by this Part of this Act and (notwithstanding any provision in the lease) shall be subject to the liabilities and obligations to which the Corporation are subject and shall perform the duties of the Corporation under this Part of this Act.

84.—(1) The Corporation may make and enforce byelaws with respect to the transporter bridge undertaking for all or any of the following purposes, that is to say:—

Byelaws
(Transporter
bridge).

- (a) regulating, controlling and limiting the use of the transporter bridge and any suspended car or platform used in connection therewith;
- (b) preventing the commission of any nuisance in or upon the transporter bridge, suspended car or platform or the subsidiary works;
- (c) preventing injury or damage to the transporter bridge or the subsidiary works;
- (d) regulating the duties and conduct of the officers and servants of the Corporation and other persons employed in or about the transporter bridge;
- (e) regulating the conveyance of passengers, goods, luggage and vehicles in or upon any such suspended car or platform and the embarkation and disembarkation thereof;
- (f) prohibiting the embarkation of any goods or vehicles in any such suspended car or platform which may in the opinion of the Corporation be injurious to or prejudicially affect the use of the suspended car or platform or the traffic to be carried therein or endanger the safety of the transporter bridge or the suspended car or platform, or the working thereof, or traffic carried thereby or thereon; and
- (g) regulating the conduct of persons using the transporter bridge, the suspended car or platform and property

PART V
—cont.

forming part of the transporter bridge undertaking and, in particular, preserving order and preventing damage to, and loss of property.

(2) If the non-observance or disobedience of any byelaw made under this section results in danger or annoyance to the public or hindrance to the Corporation, without prejudice to their right to recover any penalty summarily the Corporation may abate, obviate or remove such danger, annoyance or hindrance.

(3) Any byelaw made in accordance with this section shall be displayed in conspicuous positions on the transporter bridge and the suspended car or platform.

(4) Any person who—

(a) offends against any byelaw made pursuant to this section; or

(b) wilfully pulls down, defaces or destroys any such displayed byelaw;

shall be guilty of an offence.

Provision
against danger
to navigation.

85.—(1) In case of injury to, or destruction or decay of, a tidal work or any part thereof, the Corporation shall forthwith notify the port authority and shall lay down buoys, exhibit such lights or take such other steps for preventing danger to navigation as the port authority shall from time to time direct.

(2) If the Corporation fails to notify the port authority as required by this section or to comply in any respect with a direction given under this section, it shall be liable on summary conviction to a fine not exceeding one hundred pounds and on conviction on indictment to a fine.

For protection
of port
authority.

86.—(1) All works of or connected with the maintenance, renewal or repair of the transporter bridge shall be carried out so as not to interfere with the navigation of the river or any work of the port authority, in accordance with the reasonable requirements of the port authority as to the timing of such works and to the reasonable satisfaction of the port authority and any question arising under this subsection shall be determined by the Secretary of State.

(2) The Corporation shall not at any time alter or extend the transporter bridge as it exists at the commencement of this Act without first obtaining the consent and approval in writing of the port authority.

(3) If any work be commenced or carried out contrary to the provisions of this Part of this Act the port authority may remove and abate the same and restore the site thereof to its former condition at the reasonable cost and charge of the Corporation and the amount thereof shall be a debt due from the Corporation to the port authority.

PART V
—cont.

(4) If any work constructed by the Corporation on, in, over, through or across any works or lands or tidal waters within the jurisdiction of the port authority is abandoned or suffered to fall into decay the port authority may abate and remove the work or any part thereof and restore the site thereof to its former condition at the reasonable expense of the Corporation and the amount thereof shall be a debt due from the Corporation to the port authority.

(5) If at any time the port authority deem it expedient for the purposes of this Part of this Act to order a survey and examination of any work maintained by the Corporation under the powers of this Part of this Act which shall be on, under or over tidal waters or tidal lands below the level of high water or of the site upon which it is proposed to construct any such work the Corporation shall make available to the port authority every facility for such survey and inspection and shall defray the reasonable expense of the survey and examination and the amount thereof shall be a debt due from the Corporation to the port authority.

(6) (a) The port authority shall have power to take proceedings in respect of an offence created by the following sections of this Act:—

Section 77 (Vessels to have priority);

Section 78 (Conditions as to operation of car);

Section 85 (Provision against danger to navigation);

Section 115 (Permanent lights on tidal works).

(b) The port authority may recover any penalty imposed in connection with an offence referred to in this subsection.

(7) In relation to matters affecting the interests of the port authority references in this Part of this Act to “the transporter bridge” shall include all works of the Corporation connected therewith or ancillary thereto.

PART VI

FERRIES UNDERTAKING

87.—(1) Notwithstanding the repeal by this Act of the existing enactments, the ferries undertaking as it exists immediately before the commencement of this Act shall continue vested in the Corporation and be held, used and enjoyed by them.

Ferries
undertaking
to continue
vested in
Corporation.

(2) Subject to the provisions of this Act the Corporation may—

- (i) repair, maintain and improve ferry landing places on the river and the approaches thereto and may erect, repair and maintain all necessary and convenient wharfs, buildings, sheds, rails, cranes and other works and equipment and conveniences in connection with the operation of the ferries;

PART VI
—cont.

- (ii) provide, repair, maintain and operate vessels for the conveyance of passengers, goods and vehicles for providing convenient communication between the ferry landing places.

1964 c. 40.

(3) Nothing in this section shall exempt the Corporation from the provisions of section 9 of the Harbours Act 1964 in relation to the works authorised by this Act.

Use of ferries.

88. Nothing in this Part of this Act shall be construed as creating any exclusive rights of ferry or passage but all persons shall be entitled to use the ferries subject to the byelaws and regulations made by the Corporation and upon payment of the ferry charges.

Ferry charges.

89.—(1) Subject to the provisions of this section, the Corporation may demand, take and recover any charges not exceeding the sums mentioned in Schedule 6 to this Act or such other charges as may from time to time be authorised for the use of—

(a) vessels for the passage to and from the landing places; and

(b) wharfs, buildings, sheds, rails, cranes and other works, equipment and conveniences in connection with the operation of the ferries;

as provided by the Corporation:

Provided that—

(i) the charges shall be such as may be reasonable to enable the Corporation to exercise and perform their statutory functions in connection with the ferries undertaking; and

(ii) the charges specified in Schedule 6 to this Act may from time to time be altered by an order made by the Secretary of State in exercise of the powers conferred on him by section 6 of the Transport Charges &c. (Miscellaneous Provisions) Act 1954.

1954 c. 64.

(2) A list of all the charges from time to time payable in accordance with this Part of this Act shall be displayed in conspicuous positions on the ferry landing places and vessels.

(3) The Corporation may make regulations as to the places, time and the manner in which the charges authorised by this Part of this Act shall be paid.

(4) Any person who—

(a) knowingly or wilfully refuses or neglects to pay any charge when the same shall be demanded from him by virtue of this Part of this Act; or

(b) wilfully pulls down, defaces or destroys any such list of ferry charges;

shall be guilty of an offence.

(5) In the exercise of the powers of this section the Corporation shall not show undue preference to any person and shall not exercise any undue discrimination against any person.

PART VI
—cont.

(6) Any dispute which arises as to the amount of the tolls due to the Corporation by virtue of this Part of this Act shall be determined by the county court.

(7) The Corporation may recover such ferry charges from the person, either as a simple contract debt in any court of competent jurisdiction or, if the amount does not exceed twenty pounds, summarily as a civil debt.

90.—(1) The Corporation may lease to any person for any term not exceeding twenty-one years on such terms and conditions as they think fit the charges authorised by this Part of this Act. Power to lease charges.

(2) During the continuance of any lease made under the preceding subsection the lessee, to the extent provided in the lease, shall have and may exercise all or any of the powers, rights and remedies conferred upon the Corporation by this Part of this Act for recovering and enforcing payment of the charges granted by such lease.

91.—(1) The Corporation may discontinue the existing ferry between the landing place in the borough adjacent to the transporter bridge and Port Clarence and upon any such discontinuance shall be relieved from all obligations to maintain the same and they may sell and dispose of the ferry vessels, pontoons, landing stages and property used in connection with the said ferry. Corporation may discontinue ferry.

(2) All moneys obtained by any such sale shall be carried by them to the sinking fund or funds provided for the repayment of moneys borrowed by them for the purposes of the ferries undertaking.

(3) The Corporation may from time to time as they think fit suspend and again resume the working of the ferry mentioned in subsection (1) of this section.

92.—(1) The Corporation may make and enforce byelaws with respect to the ferries undertaking for all or any of the following purposes, that is to say:— Byelaws (Ferries).

- (a) regulating the use of the ferry landing places and the wharfs, buildings, sheds, rails, cranes and other works, equipment and conveniences provided in connection therewith;
- (b) regulating the working of the vessels used in connection with the undertaking;
- (c) regulating the conveyance of passengers, goods and vehicles in and upon the vessels and the loading, unloading, embarkation and disembarkation of the same;

PART VI
—cont.

(d) prohibiting the embarkation or loading of anything which in the opinion of the Corporation may be prejudicial to the operation of the vessels;

(e) regulating the conduct of persons using the vessels and property forming part of the ferries undertaking and, in particular, preserving order and preventing damage to, and loss of property.

(2) If any non-observance or disobedience of any byelaw made under this section results in danger or annoyance to the public or hindrance to the Corporation, without prejudice to their right to recover any penalty summarily the Corporation may abate, obviate or remove such danger, annoyance or hindrance.

(3) Any byelaw made in accordance with this Part of this Act shall be displayed in conspicuous positions on the ferry landing places and vessels.

(4) Any person who—

(a) offends against any byelaw made under this section; or

(b) wilfully pulls down, defaces or destroys any such displayed byelaw;

shall be guilty of an offence.

Provision
against
danger to
navigation.

93.—(1) In case of injury to, or destruction or decay of, a tidal work or any part thereof the Corporation shall forthwith notify the port authority and shall lay down such buoys, exhibit such lights and take such other steps for preventing danger to navigation as the port authority shall from time to time direct.

(2) If the Corporation fails to notify the port authority as required by this section or to comply in any respect with a direction given under this section, it shall be liable on summary conviction to a fine not exceeding one hundred pounds and on conviction on indictment to a fine.

For protection
of port
authority.

94.—(1) The Corporation shall not construct any works below high-water mark without the consent in writing of the port authority and all such works shall be constructed, maintained and repaired to the reasonable satisfaction of the port authority:

Provided that if any difference arises between the Corporation and the port authority such differences shall be determined by arbitration.

(2) The Corporation shall send to the port authority as soon as is practicable a copy of any byelaw made under this Part of this Act.

(3) If any work constructed or to be constructed by the Corporation for the purposes of the ferries undertaking within the tidal limits of the river shall be abandoned or allowed to fall into disuse or decay, it shall be lawful for the port authority to

abate and remove the same or such part thereof as they may at any time think fit and proper and restore the site thereof to its former condition at the reasonable cost of the Corporation and the amount thereof shall be a debt due from the Corporation to the port authority.

PART VI
—cont.

(4) Where the port authority are desirous of extending within the tidal limits any works either for improving the navigation of the river or necessary for the conservancy and improvement thereof which shall render it necessary to alter any of the landing places, works, sheds, buildings or other conveniences which may be constructed in or upon the shore or bed of the river by the Corporation, subject to the provisions of this Act, the Corporation shall upon request in writing by the port authority at the reasonable cost of the port authority alter to the extent and in manner required by the port authority any of the landing places, works, sheds, buildings or other conveniences which may at any time be so constructed in or upon the shore or bed of the river and in either of the cases aforesaid the port authority shall pay to the Corporation compensation in respect of any damage or injury or unnecessary expenditure occasioned to them in consequence of such landing place or other work being so altered as aforesaid, the amount of such compensation to be mutually agreed upon between the parties or failing agreement to be determined by arbitration:

Provided that if within three months the Corporation fail to comply with such request the port authority (subject as aforesaid) may alter the same to the extent required as aforesaid.

(5) If the Corporation construct any work contrary to the provisions of subsection (1) of this section they shall be guilty of an offence, and in addition thereto it shall be lawful for the port authority to abate, alter and remove the same and to restore the site thereof to its former condition at the reasonable cost of the Corporation and the amount thereof shall be a civil debt due from the Corporation to the port authority.

(6) (a) The port authority shall have power to take proceedings in respect of an offence created by the following sections:—

Section 93 (Provision against danger to navigation);

Section 94 (For protection of port authority);

Section 95 (Penalty for unauthorised dredging);

Section 115 (Permanent lights on tidal works).

(b) The port authority may recover any penalty imposed in connection with an offence referred to in this subsection.

95.—(1) Nothing in this Part of this Act shall authorise the Corporation to execute in any part of the river any dredging for unauthorised the purpose of removing any part of the bed or foreshore of the dredging.

PART VI
—cont.

river without the consent in writing of the port authority or to any greater extent or in any other manner than shall be so authorised by them.

(2) If the Corporation shall execute any such dredging without such consent as aforesaid they shall be guilty of an offence, and in addition the Corporation shall be liable to pay to the port authority the reasonable cost of restoring the portion of the river so dredged to its former state and condition if they shall think fit so to restore the same.

PART VII

TEES (NEWPORT) BRIDGE UNDERTAKING

Interpretation
of Part VII
of Act.

96. In this Part of this Act—

“the bridge” means the Tees (Newport) bridge;

“deposited plans and sections of 1930” means the plans and sections deposited in respect of the Bill for the Tees (Newport) Bridge Act 1930.

1930 c. lxxxix.

Tees
(Newport)
bridge to
continue
vested in
Corporation.

97.—(1) Notwithstanding the repeal by this Act of the existing enactments, the Tees (Newport) bridge undertaking as it exists immediately before the commencement of this Act shall continue vested in the Corporation and may be held, used and enjoyed by them.

(2) Subject to the provisions of this Act, the Corporation may—

(a) maintain the bridge and the subsidiary works and, in connection with the bridge and as part and for the services thereof, provide, maintain and repair subsidiary works within the limits of deviation shown on the deposited plans and sections of 1930; and

(b) work the bridge by electric or other power.

Provision
against
danger to
navigation.

98.—(1) In case of injury to, or destruction or decay of a tidal work or any part thereof the Corporation shall forthwith notify the port authority and shall lay down buoys, exhibit such lights or take such other steps for preventing danger to navigation as the port authority shall from time to time direct.

(2) If the Corporation fails to notify the port authority as required by this section or to comply in any respect with a direction given under this section it shall be liable on summary conviction to a fine not exceeding one hundred pounds and on conviction on indictment to a fine.

Bridge to be
opened for
vessels.

99.—(1) (a) The Corporation shall appoint and continue to employ a person (hereinafter referred to as “the bridge keeper”) to open the bridge for the passage of vessels in accordance with the provisions of this section.

(b) If the Corporation fail to comply with the provisions of this subsection, they shall be guilty of an offence.

PART VII
—cont.

(2) The bridge keeper shall open the bridge for the passage of vessels requiring the same at any time:

Provided that at least twelve hours' notice has been given to the borough engineer and surveyor of the Corporation.

(3) At any time when the bridge keeper opens the bridge for the passage of vessels in accordance with the provisions of subsection (2) of this section, he shall allow any other vessel then waiting to pass the bridge to do so.

100.—(1) The Corporation may make and enforce byelaws with respect to the Tees (Newport) bridge undertaking for all or any of the following purposes, that is to say:—

Byelaws
(Tees
(Newport)
bridge).

(a) regulating, controlling and limiting the use of the bridge;

(b) preventing injury or damage to the bridge or the subsidiary works;

(c) regulating the duties and conduct of the officers and servants of the Corporation and other persons employed in or about the bridge;

(d) regulating the conduct of persons using the bridge and property forming part of the Tees (Newport) bridge undertaking and, in particular, preserving order and preventing damage to, and loss of property.

(2) If the non-observance or disobedience of any byelaw made under this section results in danger or annoyance to the public or hindrance to the Corporation, without prejudice to their right to recover any penalty summarily, the Corporation may abate, obviate or remove such danger, annoyance or hindrance.

(3) Any byelaws made in accordance with this section shall be displayed in conspicuous positions on the bridge.

(4) Any person who—

(a) offends against any byelaw made pursuant to this section;
or

(b) wilfully pulls down, defaces or destroys any such displayed byelaw;

shall be guilty of an offence.

101.—(1) No vessel shall be anchored or moored under or for a distance of two hundred yards on either side of the bridge or in such a manner as to hinder or interfere with the proper working of the bridge.

Regulating
mooring of
vessels near
bridge.

PART VII
—*cont.*

(2) No person shall navigate any vessel under or near the bridge in such a manner as to cause unnecessary obstruction to the working thereof.

(3) Any person who contravenes the provisions of this section shall be guilty of an offence.

(4) The provisions of this section shall not apply to any vessels used in dredging operations by the port authority.

No works on
Tees (Newport)
bridge except
with consent
of Corporation.

102. Notwithstanding anything in any enactment, it shall not be lawful for any person to enter upon or interfere with the bridge or to break up the carriageway and footways over the same for the purpose of executing any work whatsoever therein, thereon or thereunder, except with the consent of the Corporation in writing and on such terms and conditions either as to the payment of any rent or other valuable consideration, or otherwise, as the Corporation think fit.

Signals.

103. The byelaws to be made pursuant to this Part of this Act shall prescribe a code of signals as may be directed by the port authority for the raising and lowering of the vertical lifting span of the bridge adapted for use by day or by night and visible (when atmospheric conditions permit) at least half a mile above and below the bridge.

For protection
of port
authority.

104.—(1) All works of or connected with the maintenance, renewal or repair of the bridge shall be carried out so as not to interfere with the navigation of the river or any work of the port authority, in accordance with the reasonable requirements of the port authority as to the timing of such works and to the reasonable satisfaction of the port authority and any question arising under this subsection shall be determined by the Secretary of State.

(2) The Corporation shall not at any time alter or extend the bridge as it exists at the commencement of this Act without first obtaining the consent and approval in writing of the port authority.

(3) If any work be commenced or carried out contrary to the provisions of this Part of this Act the port authority may remove and abate the same and restore the site thereof to its former condition at the reasonable cost and charge of the Corporation and the amount thereof shall be a debt due from the Corporation to the port authority.

(4) If any work constructed by the Corporation on, in, over, through or across any works or lands or tidal waters within the jurisdiction of the port authority is abandoned or suffered to fall into decay the port authority may abate and remove the work or any part thereof and restore the site thereof to its former

condition at the reasonable expense of the Corporation and the amount thereof shall be a debt due from the Corporation to the port authority.

PART VII
—cont.

(5) If at any time the port authority deem it expedient for the purposes of this Part of this Act to order a survey and examination of any work maintained by the Corporation under the powers of this Part of this Act which shall be on, under or over tidal waters or tidal lands below the level of high water or of the site upon which it is proposed to construct any such work the Corporation shall make available to the port authority every facility for such survey and inspection and shall defray the reasonable expense of the survey and examination and the amount thereof shall be a debt due from the Corporation to the port authority.

(6) (a) The port authority shall have power to take proceedings in respect of an offence created by the following sections of this Act:—

Section 98 (Provision against danger to navigation);

Section 99 (Bridge to be opened for vessels);

Section 115 (Permanent lights on tidal works).

(b) The port authority may recover any penalty imposed in connection with an offence referred to in this subsection.

(7) In relation to matters affecting the interests of the port authority references in this Part of this Act to “the bridge” shall include all works of the Corporation connected therewith or ancillary thereto.

105. For the protection of the British Railways Board (in this section referred to as “the board”) the following provisions shall unless in any case it is otherwise agreed between the Corporation and the board apply and have effect:—

For
protection
of the
British
Railways
Board.

(1) In this section—

“the railway” means any railway of the board and any works connected therewith and includes any lands held or used by the board for the purposes of such railway or works;

“the works” means so much of any of the works authorised by the Tees (Newport) Bridge Act 1930 as may be situate upon across under or over the railway or may in any way affect the same and includes the maintenance repair and renewal of such works;

“the engineer” means an engineer to be appointed by the board:

(2) The board shall not be responsible for lateral and vertical support for the works:

PART VII
—cont.

- (3) If any alterations or additions either permanent or temporary to the railway or to the signalboxes signals signalling apparatus or the telephone or telegraph wires or electric cables or the gas and water mains service pipes drains and other works are in the opinion of the engineer reasonably necessary in connection with the maintenance of the works such alterations and additions shall be made and maintained by the board at the expense of the Corporation and the reasonable costs thereof as certified by the engineer shall be repaid to the board by the Corporation on demand:
- (4) The Corporation shall at all times maintain the bridges by which the works shall be carried over the railway and all necessary works ancillary to such bridges in substantial repair and good order and condition to the reasonable satisfaction of the engineer and if and whenever the Corporation fail so to do after reasonable notice in that behalf the board may make and do in over and upon as well the lands or property of the board as of the Corporation such works and things as the engineer shall think requisite in that behalf and the reasonable cost of so doing as certified by the engineer shall be repaid to the board by the Corporation on demand:
- (5) The Corporation shall be responsible for and make good to the board all costs charges losses damages and expenses which may be occasioned to them or to the railway or to the traffic thereon or otherwise by reason of the maintenance or failure of the works over or adjacent to the railway or of any act or omission of the Corporation or of any person or persons in their employ or of their contractors in connection with the works and the Corporation shall effectually indemnify the board from all claims and demands upon or against them by reason of such maintenance or failure or of any such act or omission:

Provided that the fact that any work or thing has been done in accordance with any plan section drawing or specification approved by the engineer or in accordance with any requirement of the engineer shall not excuse the Corporation from any liability for damage as aforesaid or affect any claim of the board for injury to the railway or the traffic thereon save so far as the same may arise by reason of any such requirement:

- (6) The Corporation shall indemnify the board against all claims for road making or street work charges or the maintenance thereof occasioned by the construction of the works:

- (7) If at any time hereafter the board shall be desirous in exercise of statutory powers for such purposes existing on the fourth day of June 1930 of widening or altering any part of the railway affected by the works or of adapting their railway for working by electrical power the Corporation shall give to the board all proper and reasonable facilities for that purpose including the right in connection with electrification to make attachments subject to the reasonable approval of the Corporation to the said works but nothing in this paragraph shall entitle the board to require the Corporation to alter the main structure of the bridge:
- (8) The Corporation shall at all times in exercise of their powers in relation to the works provide to the reasonable satisfaction of the engineer access for pedestrian and vehicular traffic going to or coming from any station or depot of the board existing at the fourth day of June, 1930:
- (9) Any difference arising between the Corporation and the board under this section shall be determined by arbitration.

PART VII
—cont.

PART VIII

VICTORIA BRIDGE UNDERTAKING

106. In this Part of this Act—

- “ the bridge ” means the Victoria bridge, Stockton-on-Tees;
“ deposited plans and sections of 1881 ” means the plans and sections deposited in respect of the Bill for the Stockton Bridge Act 1881.

Interpretation
of Part VIII
of Act.

1881 c. cxlvii.

107.—(1) Notwithstanding the repeal by this Act of the existing enactments, the Victoria bridge undertaking as it exists immediately before the commencement of this Act shall continue vested in the Corporation and may be held, used and enjoyed by them.

Victoria
bridge to
continue
vested in
Corporation.

(2) Subject to the provisions of this Act, the Corporation may maintain the bridge, the approach roads and the subsidiary works and, in connection with the bridge shall provide, maintain and repair any works within the limits of deviation shown on the deposited plans and sections of 1881.

108.—(1) The Corporation may make and enforce byelaws with respect to the Victoria bridge undertaking for all or any of the following purposes that is to say:—

Byelaws
(Victoria
bridge).

- (a) preventing injury or damage to the bridge, approach roads and works connected therewith; and

PART VIII
—cont.

(b) regulating, controlling and limiting the use of the bridge and approach roads.

(2) If the non-observance or disobedience of any byelaw made under this section results in danger or annoyance to the public or hindrance to the Corporation, without prejudice to their right to recover any penalty summarily, the Corporation may abate, obviate or remove such danger, annoyance or hindrance.

(3) Any byelaws made in accordance with this section shall be displayed in conspicuous positions on the bridge.

(4) Any person who—

(a) offends against any byelaw made pursuant to this section; or

(b) wilfully pulls down, defaces or destroys any such displayed byelaw;

shall be guilty of an offence.

For
protection
of port
authority.

109.—(1) All works of or connected with the maintenance, renewal, removal or repair of the bridge shall be carried out so as not to interfere with the navigation of the river or any work of the port authority and to the reasonable satisfaction of the port authority and any question arising under this subsection shall be determined by the Secretary of State.

(2) The Corporation shall not at any time alter or extend the bridge as it exists at the commencement of this Act without first obtaining the consent and approval in writing of the port authority.

PART IX

MISCELLANEOUS AND GENERAL

Power to
borrow,

110.—(1) The Corporation may borrow—

(a) such sums as may be necessary for any of the purposes of this Act;

(b) without the consent of any sanctioning authority, such sums as may be necessary for paying the costs, charges and expenses of this Act;

1933 c. 51.

and, subject to the provisions of this section, Part IX of the Local Government Act 1933 shall have effect as if money borrowed under this section were borrowed under that Part.

(2) The Corporation shall repay sums borrowed under paragraph (b) of the foregoing subsection within five years from the date of borrowing.

(3) It shall not be lawful to exercise the powers of borrowing conferred by paragraph (a) of subsection (1) of this section

except in compliance with any order for the time being in force under section 1 of the Borrowing (Control and Guarantees) Act 1946.

PART IX
—*cont.*
1946 c. 58.

111.—(1) The Corporation, by means of an order made by the Corporation and submitted to and confirmed by the Secretary of State, may be authorised to purchase lands within the borough compulsorily for the purposes of this Act. Purchase of lands for undertakings.

(2) The Acquisition of Land (Authorisation Procedure) Act 1946 shall apply to the compulsory purchase of lands under this section and accordingly shall have effect as if this section were an enactment contained in a public general Act and in force immediately before the commencement of that Act. 1946 c. 49.

(3) (a) The Corporation may be authorised under this section to acquire compulsorily such easements or rights only as they may require without purchasing any other interest in the lands.

(b) In relation to the compulsory acquisition of any such easement or right the Acquisition of Land (Authorisation Procedure) Act 1946 and the enactments incorporated therewith shall have effect as if references (whatever the terms used) to the lands comprised in the compulsory purchase order were construed where the context so requires as references to the lands in respect whereof the easement or right is acquired, and references to the obtaining or taking possession of the lands so comprised were construed as references to the exercise of the easement or right.

(4) Where the Corporation have acquired an easement or right only in any lands under this section—

(a) they shall not be required or (except by agreement) entitled to fence off or sever those lands from the adjoining land;

(b) the owner or occupier of the lands for the time being shall, subject to the easement or right, have the same right to use the lands as if this Act had not been passed.

(5) If in his particulars of claim the owner of any lands in respect of which notice to treat for an easement or right is given under this section requires the Corporation to acquire the lands the Corporation shall not be entitled under this section to acquire the easement or right unless the Lands Tribunal determines that the easement or right can be granted without material detriment to the lands or, in the case of a park or garden belonging to a house, without seriously affecting the amenity or convenience of the house:

Provided that nothing in this subsection shall apply to lands forming part of a street.

PART IX
—*cont.*

(6) A notice to treat given under this section for an easement or right shall be endorsed with notice of the effect of subsection (5) of this section.

Compensation
how to be
determined.

112. When any compensation, costs, damages or expenses is or are by this Act directed to be paid and the method for determining the amount thereof is not otherwise provided for such amount shall in case of dispute be ascertained in the manner provided by subsection (2) of section 278 of the Public Health Act 1936.

1936 c. 49.

Confirming
authority for
byelaws.
1933 c. 51.

113. As respects byelaws made under this Act the confirming authority for the purpose of section 250 of the Local Government Act 1933 shall be the Secretary of State.

Local inquiries.

114.—(1) Any Minister of the Crown may cause such local inquiries to be held as he may consider necessary for the purpose of any of his functions under this Act.

(2) Subsections (2) to (5) of section 290 of the Local Government Act 1933 shall apply in relation to any such inquiry; and for that purpose the definition of “department” in subsection (8) of that section shall include any Minister of the Crown having functions under this Act as well as the Ministers therein mentioned.

(3) In this section “Minister of the Crown” has the same meaning as in the Ministers of the Crown (Transfer of Functions) Act 1946.

1946 c. 31.

Permanent
lights on
tidal works.

115.—(1) After the completion of a tidal work the Corporation shall at the outer extremity thereof exhibit every night from sunset to sunrise such lights, if any, and take such other steps for the prevention of danger to navigation as the port authority shall from time to time direct.

(2) If the Corporation fails to comply in any respect with a direction given under this section it shall be liable on summary conviction to a fine not exceeding one hundred pounds and on conviction on indictment to a fine.

Survey of
tidal works.

116. The Secretary of State may at any time if he deems it expedient order a survey and examination of a tidal work, and any expenditure incurred by the Secretary of State in any such survey and examination shall be recoverable from the Corporation as a simple contract debt.

Abatement
of works
abandoned
or decayed.

117.—(1) Where a tidal work is abandoned, or suffered to fall into decay, the Secretary of State may by notice in writing require the Corporation at their own expense either to repair and restore

the work or any part thereof, or to remove the work and restore the site thereof to its former condition, to such an extent and within such limits as the Secretary of State thinks proper.

PART IX
—*cont.*

(2) Where a work consisting partly of a tidal work and partly of works of the Corporation on or over land above the level of high water is abandoned or suffered to fall into decay and that part of the work on or over land above the level of high water is in such condition as to interfere or to cause reasonable apprehension that it may interfere with the right of navigation or other public rights over the foreshore, the Secretary of State may include that part of the work, or any portion thereof, in any notice under this section.

(3) If, on the expiration of thirty days from the date when a notice under this section is served upon the Corporation, they have failed to comply with the requirements of the notice the Secretary of State may execute the works specified in the notice and any expenditure incurred by him in so doing shall be recoverable from the Corporation as a simple contract debt.

118. Nothing in this Act contained shall prejudice or affect the powers, rights and privileges of the Corporation of Trinity House of Deptford Strond. Saving for
Trinity House
of Deptford
Strond.

119. Without prejudice to any existing right of Her Majesty and save as provided by any enactment nothing in this Act shall extend to authorise any tolls or charges to be demanded or received from any person when on duty in the service of the Crown or for any animal, vehicle or goods the property of or when being used in the service of the Crown or returning after being so used or from any police officer acting in the execution of his duty. If any person wilfully and with intent to defraud claims or takes the benefit of any such exemption as aforesaid without being entitled thereto he shall for every such offence be liable on summary conviction to a fine not exceeding ten pounds. Exemption
from tolls or
charges in
case of persons
in service of
Crown, etc.

120.—(1) Nothing in this Act affects prejudicially any estate, right, power, privilege or exemption of the Crown and, in particular and without prejudice to the generality of the foregoing, nothing herein contained authorises the Corporation or any local authority to take, use, or in any manner interfere with, any land or hereditaments or any rights of whatsoever description— Crown rights.

(a) belonging to Her Majesty in right of Her Crown and under the management of the Crown Estate Commissioners without the consent in writing of those commissioners on behalf of Her Majesty first had and obtained for that purpose; or

PART IX
—cont.

(b) belonging to a government department or held in trust for Her Majesty for the purposes of a government department without the consent in writing of that government department.

1950 c. 39.

(2) Nothing in this section shall prejudice or affect any statutory powers of the Corporation or any local authority or highway authority to carry out code-regulated works within the meaning of the Public Utilities Street Works Act 1950 in any highway vested in or maintained by the Secretary of State.

Arbitration.

121. In arbitrations under a provision of this Act mentioned in the first column of the following table the reference shall be to a single arbitrator to be appointed by agreement between the parties, or, in default of agreement, to be appointed by the person mentioned in the second column of that table on the application of any party after giving notice in writing to the other party or parties:—

Provision of Act	Person appointing arbitrator
Subsection (3) of section 6 (Works for provision of heat)	The President of the Institution of Electrical Engineers.
Subsection (2) of section 10 (Power to lay down or erect electric lines, etc.)	The President of the Institution of Civil Engineers.
Subsection (3) or subsection (5) of section 66 (Cloakrooms, etc.)	The President of the Institution of Civil Engineers.
Subsection (1) and subsection (4) of section 94 (For protection of port authority)	The President of the Institution of Civil Engineers.
Subsection (9) of section 105 (For protection of the British Railways Board)	The President of the Institution of Civil Engineers.

Penalties for offences against Act.

122.—(1) Except as hereinbefore in this Act or in subsection (2) of this section otherwise provided, any person guilty of an offence against the provisions of this Act shall be liable on summary conviction to a fine not exceeding twenty pounds.

(2) Any person guilty of an offence against any of the following provisions of this Act, namely:—

- Section 77 (Vessels to have priority);
- Section 78 (Conditions as to operation of car);
- Section 85 (Provision against danger to navigation);
- Section 95 (Penalty for unauthorised dredging);
- Section 98 (Provision against danger to navigation);
- Section 99 (Bridge to be opened for vessels);

shall be liable on summary conviction to a fine not exceeding one hundred pounds and, where the contravention in respect of which a person is convicted of such an offence against this Act is continued after conviction, shall be liable on summary conviction to a fine not exceeding fifty pounds for each day or part of a day during which the contravention is shown to have continued.

PART IX
—cont.

123.—(1) In proceedings under any enactment, a document purporting to be certified by the town clerk as a copy of a resolution passed, order made, or report received, by the council or a committee thereof on a specified date shall be evidence that that resolution, order or report was duly passed, made or received by the council or committee on that date. Evidence of proceedings, appointments, etc.

(2) In proceedings under any enactment, a document purporting to be certified as aforesaid as a copy of the appointment of, or of an authority given to, an officer of the council or a committee thereof on a specified date shall be evidence that that appointment was duly made, or that that authority was duly given, by the council or committee on that date.

(3) In this section “ officer ” includes a servant and an agent.

(4) Section 286 of the Public Health Act 1936, and that section as applied by, or incorporated in, any other enactment, shall cease to apply to the council and its committees.

124. Subject to the provisions of this Act the written consent of the Attorney-General shall be requisite for the taking of proceedings in respect of an offence created by or under this Act by any person other than a party aggrieved or the Corporation or a constable. Restriction on right to prosecute.

125.—(1) Section 300 of the Public Health Act 1936 shall apply to appeals to a magistrates’ court under this Act; and sections 301 and 302 of that Act shall apply accordingly. Appeals.

(2) Where any requirement, refusal or other decision of the Corporation against which a right of appeal is conferred by this Act—

- (a) involves the execution of any work or the taking of any action; or
- (b) makes it unlawful for any person to carry on a business which he was lawfully carrying on up to the time of the requirement, refusal or decision, or to use premises for any purpose for which they were lawfully used up to that time;

PART IX
—*cont.*

then, until the time for appealing has expired or, if an appeal is lodged, until the appeal is disposed of or withdrawn or fails for want of prosecution—

- (i) no proceedings shall be taken in respect of any failure to execute the work, or take the action, nor shall the Corporation themselves execute the work or take the action; and
- (ii) that person may carry on that business, and use those premises for that purpose.

Protection of
members and
officers of
Corporation
from personal
liability.
1875 c. 55.

126. Section 265 of the Public Health Act 1875 shall apply to the Corporation as if any reference in that section to the said Act of 1875 included a reference to this Act and as if any reference in that section to a member of a local authority included a reference to a member of a committee or a sub-committee of a local authority.

Application
of general
provisions of
Public Health
Act 1936.
1936 c. 49.

127.—(1) The sections of the Public Health Act 1936 mentioned in Part I of Schedule 7 to this Act shall have effect as if references therein to that Act included references to this Act.

(2) The section of the said Act of 1936 mentioned in Part II of the said schedule shall have effect as if references therein to that Act included a reference to this Act other than Part II (Heating undertaking).

(3) The sections of the said Act of 1936 mentioned in Part III of the said schedule shall have effect as if references therein to that Act included a reference to section 64 (Trees overhanging streets) of this Act.

Saving for
port authority.

128. Nothing in this Act contained shall extend to prejudice, diminish, alter or take away any of the powers, rights, privileges or authorities vested in or exercisable by the port authority.

Saving for
Coast
Protection
Act 1949.
1949 c. 74.

129. Nothing in this Act contained shall affect the application to any operation of sections 34 to 36 of the Coast Protection Act 1949 (which require the consent of the Board of Trade or the Secretary of State to certain operations and contain other provisions for the safety of navigation).

As to
inconsistent
requirements
of the
Secretary of
State and
port authority.

130. Notwithstanding anything in this Act contained in the event of any inconsistency between any requirement or direction of the port authority under this Act and a requirement or direction made by the Secretary of State under this Act, the Corporation shall be deemed to have complied with the provisions of this Act if it has complied with the requirement or direction of the Secretary of State.

131. The enactments specified in Schedule 8 to this Act are (in so far as they are not already repealed) hereby repealed to the extent mentioned in that schedule.

PART IX
—cont.
Repeal.

132. The costs, charges and expenses preliminary to and of and incidental to the preparation of and the application for and the obtaining and passing of this Act shall be paid by the Corporation.

Costs of Act.

SCHEDULES

Section 3.

SCHEDULE 1

SECTIONS OF ACT TO WHICH SECTION 3 OF THIS ACT APPLIES

- Section 17 (Byelaws for protection of heating undertaking);
- Section 37 (Market byelaws);
- Section 70 (Byelaws as to the purchase of tickets and use of stations, etc.);
- Section 84 (Byelaws (Transporter bridge));
- Section 92 (Byelaws (Ferries));
- Section 100 (Byelaws (Tees (Newport) bridge));
- Section 113 (Confirming authority for byelaws).

Section 23.

SCHEDULE 2

PART I

MAXIMUM MARKET TOLLS, STANDAGES, STALLAGES AND CHARGES

Per day

Space stallage and standage in an open market

For space occupied by stallholders and others whether on the roadway or footway (including persons selling poultry, butter and eggs outside the Shambles) except persons selling by auction, Dutch auction or hand-selling whether with a stall and/or with goods on the ground occupying space:

Per square foot	...	...	...	...	...	£0·00625
with a minimum payment of	...	...	...	...	...	£0·025

Additional charge where the Corporation provide a stall—

Per square foot	...	...	...	...	...	£0·0083
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Sales by auction

Each person selling by auction, Dutch auction or hand-selling in the High Street other than horses, cows, cattle, sheep, lambs, pigs, geese or goats irrespective of the space occupied	...	...	...	...	...	£0·525
Each sale by auction in streets or elsewhere other than the High Street	...	...	...	...	...	£0·25

Per day

SCH. 2
—cont.*Itinerant vendors*

For every person standing or walking in the market whether with or without a hand-cart or other vehicle and exposing commodities of any kind for sale and not occupying any defined compartment or space of the surface of the ground

£0.05

Animals offered for sale by auction

Horses each

£0.05

Bulls each

£0.05

Cattle each

£0.025

Sheep } £0.0083 per head but a minimum payment

Pigs } of £0.05 for a pen.

Fat lambs }

Grazing lambs per head

£0.00416

Geese per flock

£0.125

Herd of goats minimum payment of

£0.25

Cattle, animals, poultry, eggs and butter exhibited for sale by private contract

For every beast pen

£0.10

For fat cattle shown therein per head

£0.025

For lean or store cattle shown therein per head

£0.016

For every bull shown

£0.05

For every cow or other beast shown

£0.025

For every calf shown

£0.016

For every horse, mare or gelding shown

£0.05

For each pen not exceeding six head of sheep, pigs or

lambs

£0.05

For every head above six in the same pen

£0.0083

If space on ground not occupied for sale of poultry, eggs and butter:

For every basket or bowl of butter or eggs

£0.025

For every head of poultry

£0.0125

Hay and straw

For every wagon or cart standing for the sale of hay or

straw

£0.05

Weighing machines

Per item

For weighing every cart or wagon with or without its contents not exceeding one ton

£0.05

Above one ton

£0.075

For weighing meat or any other article or thing

£0.0125

Corn

Per day

For every sample of wheat, oats, barley, peas, beans, maize and pulse or other grain and seeds of every description whether English or foreign wherever shown:

Per sample

£0.025

SCH. 2
—cont.

PART II

SHAMBLES

For space occupied by stallholders—	Per day
On Wednesdays for each square foot or part of a square foot	£0·0083
On Saturdays for each square foot or part of a square foot	£0·016

Corn

Rents payable for every half-year—	
For each stand in the Corn Exchange	£3·25

Section 28.

SCHEDULE 3

PROVISIONS APPLIED TO MARKET ROADS

PART I

PROVISIONS IN RESPECT OF WHICH CERTAIN OFFICERS OF THE CORPORATION
DO NOT HAVE THE POWERS OF A POLICE CONSTABLE

Sections of Act of 1960—

Section 1	(Causing death by reckless or dangerous driving);
Section 2	(Reckless, and dangerous, driving generally);
Section 3	(Careless, and inconsiderate driving);
Section 5	(Driving under age);
Section 6	(Driving, or being in charge, when under influence of drink or drugs);
Section 9	(Reckless, and dangerous, cycling);
Section 10	(Careless, and inconsiderate, cycling);
Section 11	(Cycling when under influence of drink or drugs);
Section 13	(Restriction on carriage of persons on bicycles);
Section 16	(Leaving vehicles in dangerous positions);
Section 77	(Duty to stop, and furnish particulars, in case of accident);
Section 97	(Minimum age for driving);
Section 98	(Drivers of motor vehicles to have driving licences);
Section 110	(Offence of applying for or obtaining licence, or driving, while disqualified);
Section 201	(Users of motor vehicles to be insured or secured against third-party risks);
Section 202	(Exceptions from requirement of third-party insurance or security);
Section 218	(Penalisation of tampering with motor vehicles);
Section 219	(Penalisation of holding or getting on to vehicle in order to be towed or carried);
Section 225	(Power of police constables to require production of driving licences);
Section 226	(Power of police constables to obtain names and addresses of drivers, and others, and to require production of evidence of insurance or security and test certificates);

- | | | |
|-------------|--|----------------|
| Section 228 | (Penalisation of failure to give name and address, and power of arrest, in case of reckless or careless driving or cycling); | SCH 3
—cont |
| Section 230 | (Duty of driver, in case of accident involving injury to another, to produce evidence of insurance or security or to report accident); | |
| Section 231 | (Duty of owner of motor vehicle to give information for verifying compliance with requirement of compulsory insurance or security); | |
| Section 232 | (Duty to give information as to identity of driver, &c., in certain cases); | |
| Section 241 | (Restrictions on prosecutions for certain offences); | |
| Section 250 | (Application to the Crown). | |

Sections of the Road Safety Act 1967—

1967 c. 30.

- | | |
|------------|---|
| Section 1 | (Driving or being in charge with blood-alcohol concentration above the prescribed limit); |
| Section 2 | (Breath tests); |
| Section 5 | (Consequences of conviction of certain offences of driving or being in charge); |
| Section 6 | (Application of Part I to the Crown); |
| Section 7 | (Interpretation of Part I); |
| Section 31 | (General provisions as to interpretation, etc.). |

Sections of the Road Traffic Regulation Act 1967—

1967 c. 76.

- | | |
|------------|--|
| Section 54 | (Traffic signs); |
| Section 55 | (Powers and duties of highway authorities as to placing of traffic signs); |
| Section 61 | (Removal of traffic signs, etc.); |
| Section 79 | (Exemption of fire engines, etc., from speed limits). |

PART II

PROVISIONS IN RESPECT OF WHICH CERTAIN OFFICERS OF THE CORPORATION
HAVE THE POWERS OF A POLICE CONSTABLE

Sections of Act of 1960—

- | | |
|-------------|---|
| Section 4 | (Speeding); |
| Section 8 | (Restriction on carriage of persons on motor cycles); |
| Section 14 | (Drivers to comply with traffic directions); |
| Section 223 | (Power of police to stop vehicles). |

Section of the Road Traffic Regulation Act 1967—

- | | |
|------------|----------------------------|
| Section 58 | (Emergency traffic signs). |
|------------|----------------------------|

SCHEDULE 4

Section 41.

TROLLEY VEHICLE ROUTE

Commencing in North Ormesby at or near the junction of Langbaugh Place, West Terrace and Smeaton Street, thence proceeding along Smeaton Street, South Bank Road, Middlesbrough Road, Middlesbrough Road East, Eston Road, Bolckow Road, Birchington Avenue to its junction with the road from Stockton to Redcar (A.174), thence in a generally south-westerly direction along the last-mentioned road to the junction of Normanby Road (A.175) with the Stockton to Redcar Road (A.174), thence proceeding along Normanby Road to its junction with Middlesbrough Road.

Section 80.

SCHEDULE 5

TOLLS WHICH MAY BE DEMANDED AND TAKEN BY THE CORPORATION FOR PASSENGERS, ANIMALS, VEHICLES AND GOODS CARRIED ACROSS THE RIVER TEES BY MEANS OF THE TRANSPORTER BRIDGE FOR EACH CROSSING EITHER WAY

	p
1. For every person carried on the transporter car or platform	1
With an additional charge of $\frac{1}{2}p$ for each person conveyed in a first class portion of such car or platform	
2. For every horse, mule, ass, ox, cow, bull or head of cattle	1
For every calf, pig, sheep, lamb or other small animal ...	$\frac{1}{2}$
3. For every vehicle loaded or unloaded and drawn by any animal—	
(A) If not exceeding 20 cwt. in weight	5
(B) Exceeding 20 cwt. but not exceeding 40 cwt. ...	10
(C) Exceeding 40 cwt. but not exceeding 60 cwt. ...	15
(D) Exceeding 60 cwt. but not exceeding 80 cwt. ...	20
(E) Exceeding 80 cwt. but not exceeding 100 cwt. ...	25
(F) Exceeding 100 cwt. such sum as the Corporation think fit	
4. For every horse, ass, mule or other animal drawing a vehicle	1
5. For every hand truck unloaded (and man)	1
For every hand truck carrying a load not exceeding 10 cwt. (and man)	$1\frac{1}{2}$
For every hand truck carrying a load exceeding 10 cwt. but not exceeding 20 cwt. (and man) ...	$2\frac{1}{2}$
For every hand truck carrying a load exceeding 20 cwt. (and man)—for every 5 cwt.	1
For every bicycle, tricycle, velocipede or other similar machine	1
6. For every motor-car or carriage moved by mechanical power, loaded or unloaded in weight if—	
(A) Not exceeding 20 cwt.	5
(B) Exceeding 20 cwt. and not exceeding 30 cwt. ...	$7\frac{1}{2}$
(C) Exceeding 30 cwt. but not exceeding 40 cwt. ...	10
(D) Exceeding 40 cwt. but not exceeding 50 cwt. ...	$12\frac{1}{2}$
(E) Exceeding 50 cwt. but not exceeding 60 cwt. ...	15
(F) Exceeding 60 cwt. but not exceeding 70 cwt. ...	$17\frac{1}{2}$
(G) Exceeding 70 cwt. but not exceeding 80 cwt. ...	20
(H) Exceeding 80 cwt. but not exceeding 90 cwt. ...	$22\frac{1}{2}$
(I) Exceeding 90 cwt. but not exceeding 100 cwt. ...	25
(J) For every motor-car exceeding 100 cwt. the Corporation may demand such sum as they think fit.	

	p	SCH. 5 —cont.
7. For every parcel (other than personal luggage carried by a passenger and not exceeding 60 lbs. in weight)—		
(A) If not exceeding 1 cwt.	$\frac{1}{2}$	
(B) If exceeding 1 cwt. for every cwt. or part thereof	$\frac{1}{2}$	
8. For every traction or threshing engine or steam roller not exceeding 12 tons in weight	60	
For every traction or threshing engine or steam roller exceeding 12 tons, such sum as the Corporation think fit.		
9. For every threshing machine box or trailer	30	
10. For every tramcar such sum as the Corporation think fit.		
11. For every rider, driver or person in charge of any animal or vehicle other than a hand truck	$\frac{1}{2}$	
12. For every passenger conveyed in any vehicle	1	
13. For every person crossing the bridge on foot	1	
14. For animals, goods vehicles, articles and things not specified in the foregoing list, such tolls as the Corporation may think fit.		

SCHEDULE 6

Section 89.

FERRY CHARGES FOR EACH CROSSING EITHER WAY

	p
For carrying each person a sum not exceeding	$1\frac{1}{2}$
For every horse, mule, ass or other beast of draft or burden not drawing any wagon, cart or carriage liable to toll a sum not exceeding	$3\frac{1}{2}$
For every horse, mule, ass or other beast of draft or burden drawing any wagon, cart, or carriage liable to toll a sum not exceeding	$2\frac{1}{2}$
For every ox, cow, bull or other neat cattle a sum not exceeding	$2\frac{1}{2}$
For every calf or swine a sum not exceeding	$1\frac{1}{2}$
For every sheep, lamb or other small animal a sum not exceeding	1
For a carriage or vehicle with four wheels 1 ton in weight and upwards laden or unladen a sum not exceeding per ton	5
For a carriage with four wheels weighing less than 1 ton a sum not exceeding	5
For a carriage or cart with two wheels a sum not exceeding ...	$3\frac{1}{2}$
For all coal, coke, iron-stone or limestone not exceeding per ton	5
For all other articles and things not exceeding per ton ...	$6\frac{1}{2}$

Section 127.

SCHEDULE 7

1936 c. 49.

SECTIONS OF PUBLIC HEALTH ACT 1936 APPLIED

PART I

SECTIONS APPLIED TO THIS ACT

Section	Marginal note
271	Interpretation of "provide".
283	Notices to be in writing; forms of notices, &c.
288	Penalty for obstructing execution of Act.
297	Continuing offences and penalties.
299	Inclusion of several sums in one complaint, &c.
304	Judges and justices not to be disqualified by liability to rates.
328	Powers of Act to be cumulative.

PART II

SECTION APPLIED GENERALLY TO ACT OTHER THAN PART II

Section	Marginal note
293	Recovery of expenses.

PART III

SECTIONS APPLIED TO SECTION 64 OF THIS ACT

1925 c. 22.

Section	Marginal note
275	Power of local authority to execute certain work on behalf of owners or occupiers.
276	Power of local authority to sell certain materials.
277	Power of councils to require information as to ownership of premises.
289	Power to require occupier to permit works to be executed by owner.
294	Limitation of liability of certain owners.
295	Power of local authority to grant charging orders.
329	Saving for certain provisions of the Land Charges Act 1925.

SCHEDULE 8

Section 131.

ENACTMENTS REPEALED

Session and chapter	Title or short title	Extent of repeal
39 & 40 Vict. c. cxviii	Stockton-on-Tees Market Act 1876	The whole Act.
41 & 42 Vict. c. exciv	Stockton-on-Tees (Quay and Markets) Act 1878	The whole Act.
52 & 53 Vict. c. xcii	Stockton-on-Tees Extension and Improvement Act 1889	Sections 76-81.
2 & 3 Geo. 5 c. lv	North Ormesby South Bank Normanby and Grangetown Railless Traction Act 1912	The whole Act.
9 & 10 Geo. 5 c. xl	Stockton-on-Tees Corporation Act 1919	The whole Act.
12 & 13 Geo. 5 c. xcvi	Ministry of Health Provisional Orders Confirmation (No. 8) Act 1922	Stockton-on-Tees Order 1922.
20 & 21 Geo. 5 c. lxxxix	Tees (Newport) Bridge Act 1930	The whole Act.
20 & 21 Geo. 5 c. clxxii	Stockton-on-Tees Corporation (General Powers) Act 1930	Sections 18-34.
23 & 24 Geo. 5 c. lxxxiii	Middlesbrough Corporation Act 1933	Sections 47-121, sections 147-197, sections 420-425, Schedules 2, 4, 6, 7 and 10.
1 & 2 Geo. 6 c. xcvi	Stockton-on-Tees Corporation Act 1938	Sections 19-24.
11 & 12 Geo. 6 c. xxxii	Ministry of Health Provisional Order Confirmation (Stockton-on-Tees) Act 1948	The whole Act.
12 & 13 Geo. 6 c. xxi	Teesside Railless Traction Board (Additional Routes) Order Confirmation Act 1949	The whole Act.
—	Teesside Railless Traction Board (Trolley Vehicles) Order 1963	The whole Order.
—	Teesside Railless Traction Board (Trolley Vehicles) Order 1966	The whole Order.

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British Waterways Act 1971

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